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1601 Locust Avenue, Bohemia, NY 11716
Tel: 631.563.1110 | Fax: 631.563.3765

# Subcontractor Cover Letter for the PS508Q Project

**Date**: 3/13/2026
**To**: Elli N.Y. Design Corp.
**From**: Carmen Filpo-Garcia, Contract Manager, Citnalta Construction Corp.
**Subject**: Subcontract Agreement for PS508Q Project, Contract #C-81038

Dear Subcontractor,

We are looking forward to working with your firm on the PS508Q project at 23-10 43rd Ave., Queens, NY (Contract #C-81038). Attached, please find the Subcontract Agreement for your review and signature. A fully executed copy will be returned via DocuSign once all parties have signed.

**Important Instructions -** To ensure compliance and a smooth process, please follow these requirements:

- **Subcontract Execution**:
  - Review and execute the attached Subcontract Agreement without handwritten or other changes.
  - Only an officer, director or other duly authorized person can execute the Subcontract Agreement on behalf of the Subcontractor.
  - In the event you are requesting any revisions to the Subcontract Agreement, submit any change requests by email to Carmen Filpo-Garcia at Carmenf@citnalta.com**.** Unauthorized changes will void the Subcontract Agreement.
- **Performance and Payment Bonds or Principal's Personal Guarantee:**
  - Submit performance and payment bonds on the bond forms provided to (Attn: Carmen Filpo-Garcia), as required.
  - Any subcontractor not providing a performance and payment bond will be required to provide an original executed and notarized Principal's Personal Guarantee. Attached hereto as Riber C
  - Mail executed Performance and Payment Bonds **or** Principal's Personal Guarantee to (Attn: Carmen Filpo-Garcia) at 1601 Locust Ave., Bohemia, NY 11716
  - Failure to submit bonds or guarantee within **seven (7) days** of subcontract execution shall be considered a material breach of the subcontract.

- **SCA Subcontractor Approval Form (SAF)**:
    - Subcontractors can be submitted for approval up to **six (6) months** prior to your (and/or your sub(s) if applicable) first day of work on site. Please notify Ann Neza via email at: AnnN@citnalta.com to initiate the SAF for your firm and/or your sub(s). Guidelines for enrollment can be found on the SCA website at: http://www.nycsca.org/Vendor/Subcontractor and http://www.nycsca.org/Vendor/Insurance
    - All subcontractors, including 2nd and 3rd Tier subs, must confirm that they are submitted for approval **PRIOR** to their commencement of work otherwise they cannot be on the project.
- **Insurance**:
    - Provide General Liability, Auto, Excess Liability, and Workers' Compensation insurance certificates, as outlined in the sample attached.
    - Include the Acord Form 855 (Addendum), declaration page showing policy endorsements/exclusions.
    - E-mail within **two (2) weeks** of this letter to Ann Neza at: AnnN@citnalta.com
- **M/WLBE Participation**:
    - This project has a **30% combined Minority/Women-Owned Business Enterprise (M/WLBE)** goal.
    - Provide the names, addresses, phone numbers, contact persons, contract amounts, and copies of agreements for firms used to meet this goal, using the attached Minority Utilization Plan form.
- **Certified Payrolls and Daily Signature Logs**:
    - Submit monthly Certified Payrolls, Non-performance Reports and fully executed Daily Signature Logs electronically via the SCA Labor Compliance Management System (LCMS). If LCMS training is needed, information can be found here: https://www.nycsca.org/Doing-Business/Labor-Law-Compliance#LCMS-Payrolls-488
- **Department of Labor (DOL) Certificate of Registration**:
    - Please submit a copy of your DOL Certificate of Registration. **Next Steps**

Please return all required documents (Subcontract Agreement, original Payment & Performance bonds and/or Principal's Personal Guarantee, insurance certificates, DOL Certification, and Minority Utilization Plan) within **two (2) weeks** of this letter, unless otherwise specified. For

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questions, contact our main office at 631-563-1110 or email Carmen Filpo-Garcia Carmenf@citnalta.com.

We look forward to a successful collaboration on the PS508Q project.

Sincerely,
**Citnalta Construction Corp.**
Carmen Filpo-Garcia, LEED AP, ENV SP
Contract Manager

Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

# SUBCONTRACT – AGREEMENT

This Subcontract Agreement ("**Agreement**") is made and entered into on the date of last signature affixed hereto ("**Effective Date**") by and between CITNALTA CONSTRUCTION CORP., (hereinafter referred to as either "**Citnalta**" or the "**Contractor**") a New York corporation having its principal office and place of business at 1601 Locust Avenue, Bohemia, New York 11716 and **Elli N.Y. Design Corp.** a corporation organized under the laws of the State of New York with its main office at 50-01 Mertopolitan Ave., Ridgewood, NY 11385 (hereinafter referred to as the "**Subcontractor**").

Witnesseth, that the Contractor and Subcontractor agree as follows:

1. **Contract Documents.** Citnalta has entered into a contract with The New York City School Construction Authority ("**NYCSCA**" or "**SCA**" or the "**Owner**"), for Contract No. C-81038 (the "**Contract**"); PS 508 @ 23-10 43rd Avenue (Queens) – New Five-Story School Building on top of an Existing Basement ("**Project**").

The Contract, Plans, Phasing Exhibit, Standard Specifications, General Conditions, Special Conditions, Schedules, Addenda, Exhibits, Invitation to Bid, and any and all other documents provided by the Owner or referred to and forming a part of the aforesaid Contract between the Owner and Citnalta (the "**Contract Documents**") are hereby incorporated by reference and made a part of this Agreement. In addition, if a payment and performance bond is not provided by Subcontractor, or Citnalta otherwise requires it, then Rider C – Principal's Personal Guarantee is hereby incorporated by reference and made a part of this Agreement. All capitalized terms not otherwise defined herein shall have the same meanings assigned to them as in the Contract Documents. Subcontractor agrees that the Contract Documents shall be incorporated into this Agreement in every particular. With respect to the Work to be performed and furnished by the Subcontractor hereunder, the Subcontractor agrees to be bound to Citnalta by each and all of the terms and provisions of the Contract Documents, and to assume toward Citnalta all of the duties, obligations and responsibilities that Citnalta assumes toward the Owner. The Subcontractor agrees further that Citnalta shall have the same rights and remedies against the Subcontractor as the Owner has, under the terms and provisions of the Contract and the other Contract Documents, against Citnalta with the same force and effect as though every such duty, obligation, responsibility, right or remedy were set forth in full herein. If, however, any provision of this Agreement irreconcilably conflicts with a provision of the Contract and/or any Contract Documents, the provision imposing the greater duty or obligation on the Subcontractor shall govern.

Subcontractor represents and agrees that it has been provided an opportunity to examine the Contract Documents and that it has carefully examined and understands this Agreement and the Contract Documents, and has investigated the nature, locality and site of the Work and the conditions under which the Work is to be performed and that it enters into this Agreement on the basis of its own examination, investigation, and evaluation of all such matters and not in reliance upon any opinions or representations by Citnalta, or any of its respective officers, agents, or employees. Subcontractor also acknowledges that this Project is to be complete in 870 days from Notice to Proceed, and Phase 1, including obtaining a Temporary Certificate of Occupancy ("**TCO**"), is to be complete in 780 days from the Notice to Proceed. **However, as stated in the Phasing Exhibit attached and incorporated hereto as Rider B, Subcontractor is aware that there is a blackout period whereby no onsite Project access for any activities is permitted until 365 days from the start date indicated in the Notice to Proceed which leaves 415 days to complete Phase 1.** For the avoidance of any doubt, Subcontractor is aware that the Project involves a compressed schedule in a dense urban environment, and Subcontractor will be responsible for providing all necessary manpower, overtime, access and protection, and shift work to maintain pace with the schedule. Subcontractor agrees that all costs to maintain this Project schedule are included in the

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Subcontractor's price as set forth in Section 3 of this Agreement. Therefore, Subcontractor has incorporated all ways, means, methods, and any additional labor or overtime required to meet this schedule. Subcontractor also agrees to the New York City School Construction Authority's General Conditions, dated October 11, 2022, available at the following link, as well as the other Contract Documents: PS508Q Contract Docs.

2. **Scope of Work.** Subcontractor shall perform, furnish, provide, and install all the following work, as inserted below (the "**Work**"), and access and protection, labor, services, materials, plant, equipment, tools, scaffolds, and other items necessary for complete performance of its Work. All Work as per NYSCA Contract Specifications and Drawings dated 01/31/2025 as listed in PS 508Q LLW No. 118919, including Addendums 1-6, Phasing Exhibit, General Conditions dated October 11, 2022, Supplementary Requirements & Owner Controlled Insurance Program ("**OCIP**") Manual Edition: June 2023.

Subcontractor acknowledges and understands that the Project has an extremely aggressive schedule in a dense urban environment requiring the Project to achieve a TCO within 780 continuous calendar days, **however, as stated in the Phasing Exhibit attached and incorporated hereto as Rider B, Subcontractor is aware that there is a blackout period whereby no onsite Project access for any activities is permitted until 365 days from the start date indicated in the Notice to Proceed which leaves 415 days to complete Phase 1.** Accordingly, Subcontractor will provide all necessary manpower to maintain pace with the aggressive schedule, and Subcontractor agrees that all costs to maintain this schedule are included in the Subcontractor's price as set forth in Section 3 of this Subcontract. It is understood by Subcontractor that all material and equipment deliveries shall be in accordance with the terms in this Subcontract and coordinated in accordance with the Project Schedule and approved by the Contractor's Project Superintendent.

**Contract Value: $729,000.00**

Trade: Div 06 & DIV 12 Casework
Payment & Performance Bonds: Not Required
Addendums: 1-6

Provide all tools, equipment, labor, materials, and all other items necessary to perform the Casework scope as per Architectural drawings, FF Drawings and all drawings as they apply to the furnish & installation of the Wood Casework work, including all specifications sections DIV 01, General Conditions, Existing Conditions, DIV. 06 & DIV 12 Sections 06410 & 12302. This project is a "Time is of the Essence" project and the Subcontractor acknowledges and understands that the project has an aggressive schedule requiring the project to achieve a Temporary Certificate of Occupancy within the Owner's required schedule. The scope of work includes but is not limited to the following; Wood casework, cabinets, shelving per Architectural and FF drawing schedules (including some woodwork & countertops not designated a spec section), elevations, and callouts. All base cabinets, all filler panels and woodcaps as required, admin desk main office, computer countertops with support legs and alum strap angles including RM 328, cubby units, interior storage closets, student wardrobes & teachers closets, lobby bench, security desk, open shelving with laminated tops, wall hung shelves & cabinets, bathroom quartz countertops and classroom sinks, storage units with sliding markerboards, bookcases/cabinets with shelves including Library & RM 411C, finish carpentry of red oak at stage area including stage front with Architectural metal grille, trim, kneewall with electrical pockets, trip rail, fascia, back panel at stairs, stair assemblies, and 2" dance barre rails. Also, included wood sills and Corian sills at stairs, corridors, toilets, and student dining areas. Grommets included at all countertops, shelving, & cabinets where required. Daily center debris piling required.

**Exclusions**:
OT, tile stools, Spec Section 11600, epoxy tops, metal rail at stage, metal shelving, display cases, FE Cabinets, taxes, bonds



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Subcontractor acknowledges and agrees that it has reviewed the Contract Documents applicable to its Work and will provide the quantities specified in the Contract Documents. In the event there is a discrepancy between the quantities provided in the Subcontractor's quote or proposal, and the quantities provided in the Contract Documents, the quantities in the Contract Documents shall take priority. In addition, notwithstanding the dimensions on the Plans, Specifications, and other Contract Documents it shall be the obligation and responsibility of the Subcontractor to take such measurements as will ensure the proper matching and fitting of the Work covered by this Agreement with contiguous work. The Subcontractor shall not make any changes, additions or omissions to the Work except upon written order of Citnalta.

2.a **Differing Site Conditions.** Subcontractor acknowledges and agrees that Section 5.02 Subsurface or Site Conditions Found Different and Section 5.03. Representations of Contractor of the Contract apply in their entirety to this Subcontract. In Section 5.03 paragraphs D., E., F., and G. Contractor represents and warrants that: Any temporary and permanent Work required by the Contract Documents can be satisfactorily constructed, and that such construction will not injure any person or damage any property; that Contractor has thoroughly examined and is familiar with the Contract Documents including but not limited to the complete set of Drawings and Specifications, that the Contractor has personally fully inspected the Site, the land, buildings and conditions adjacent to the Site, and has examined same with particular regard to the Work to be furnished under this Contract; that the Contractor is satisfied as to the nature and location of the Work, the quality of subsurface conditions likely to be encountered, the character of equipment and facilities needed preliminary to and during the prosecution of the Work, the possibility and probability of increases in the cost of materials and wage rates, and all other matters upon which information is reasonably obtainable and which can in any way affect the Work under this Contract or the cost thereof.

2.b **Notice of Differing Site Conditions.** Subcontractor acknowledges and agrees that Section 5.02 B of the Contract provides that, "Should the Contractor encounter subsurface or conditions at the site materially differing from those indicted in the Contract, the Contractor shall immediately give Notice to the SCA of the differing site conditions and shall not disturb the differing site conditions until directed in writing to do so by the SCA." In order for Contractor to comply with this Notice requirement, Subcontractor shall immediately notify the Contractor of any suspected differing site condition.

3. **Payment.** Citnalta agrees to pay Subcontractor for the Work described in paragraph two above, the total consideration of **$729,000.00 (Seven Hundred Twenty Nine Thousand Dollars)**, (the "**Subcontract Amount**"), out of sums received from the Owner. Payment of the Subcontract Amount is subject to additions or deductions within the provisions of this Agreement and the Contract Documents to which this Agreement is subject. **It is expressly understood that the amount hereinabove stated for performance of the Work represents the full consideration to be paid for the Work and in no event shall there be any claims for additional costs due to "escalation" or "extras" against Citnalta, unless Citnalta agrees in writing to pay the extra amount. Any deviation from the foregoing provisions shall render the claim null and void.** Any changes, modifications or extension of the Work to be performed herein must only be done by written order specifically describing the work involved and executed by Citnalta and the Subcontractor. E-mails lacking a specific description of the Work and a timeframe for performance shall not be considered a "written order." If Subcontractor performs extra work directly for Citnalta, Subcontractor shall be paid for labor and material. A total of ten percent (10%) overhead & profit shall be applied. In the event Citnalta directs overtime, in writing, to accelerate the Project, and there is no delay on the part of the Subcontractor, Citnalta shall pay Subcontractor the additional direct costs for the premium portion of the incurred overtime labor cost but shall not pay overhead and profit on this additional cost. Payment hereunder shall not be evidence of the proper performance or progress of the Work, and no payment shall be construed to be acceptance of defective, faulty or improper work or materials.

3.a **Progress payments**. Within five (5) days after execution of this Agreement, the Subcontractor shall provide Citnalta an invoicing billing contact name and associated E-mail address. Subcontractor shall submit payment applications using Citnalta's designated project management software, currently Procore, or equivalent

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system as determined by Citnalta in the future. Within ten (10) days after execution of this Agreement, the Subcontractor will set up their Procore account and a proposed Schedule of Values for Citnalta's approval within Procore (or other platform determined to be used by Citnalta). Failure to submit payment applications through the designated system may result in a back-charge for administrative costs incurred by Citnalta to process non-compliant submissions. Subcontractor acknowledges and agrees that payments to the Subcontractor shall be based upon the Schedule of Values submitted by Citnalta to the Owner and all of Subcontractor's Work as described in paragraph 2 above shall be deemed included in Citnalta's Schedule of Values, approved by the Owner. The omission of an item of Work as described in paragraph 2 from either the Subcontractor's or Citnalta's Schedule of Values does not relieve the Subcontractors obligation to perform the Work. Citnalta shall pay Subcontractor ninety percent (90%) of the amount of the Subcontractor's items of work at the prices stipulated within fifteen (15) days after Citnalta receives payment from the Owner for Subcontractor's items of Work in the manner stipulated in the Contract Documents. In the event the Subcontractor provides performance and payment bonds as hereafter defined, Citnalta shall pay Subcontractor ninety-five (95%) percent of the amount approved and paid for by the Owner. Payment is conditional upon Subcontractor providing a signed Citnalta payment waiver for each progress payment. When such quantities and/or payment represent only a portion of the Work performed under the various items, the quantities to be paid for by Citnalta shall be determined by Citnalta. Subject to the express conditions of 3.b, progress payments may be withheld by Citnalta if: (a) Subcontractor's Work is defective and not remedied, (b) Subcontractor, or any of its Sub-subcontractors as hereinafter defined, do not make prompt and proper payments for labor, materials, or equipment furnished by it or for any applicable prevailing wages or union benefits, (c) Citnalta, the Owner, or another contractor is damaged by an act for which Subcontractor is responsible, or (d) claims or liens are filed on the project and/or the performance and payment bonds furnished by Citnalta due to the actions or omissions of the Subcontractor or Sub-subcontractors, and (e) Subcontractor's Work is not being timely performed.

3.b **Payment for Extra Work.** Payment for Extra Work performed by Subcontractor for the Owner shall be compensated pursuant to Article 7 of the Contract.

3.b.i **Recordkeeping or Extra or Disputed Work on a Time & Material Basis.** Subcontractor acknowledges and agrees that it will comply with Article 7 and 8 of the Contract in relation to Extra or Disputed Work performed on a Time & Material Basis. Subcontractor and its Sub-subcontractors (as defined below) acknowledge it shall be obligated to comply, at its own cost, with any updated process instituted by the SCA in connection to Change Orders, Extra, or Dispute Work, including any requirement for Subcontractor or its Sub-subcontractors to submit Change Order estimates directly into the SCA's Cost Estimating System.

3.b.ii **Payment for Extra Work at Citnalta's Request.** For extra or deleted work requested by Citnalta (as opposed to by the Owner) following Agreement execution, overhead and profit on labor and material totaling ten (10%) percent shall be applied to the Subcontractor's direct costs for performing the work. Subcontractor shall provide an up-to-date rate sheet denoting labor rates for all trades involved in the extra work, which must be provided to Citnalta prior to commencement of such work. In the event Citnalta directs overtime, in writing, to accelerate the Project, and there is no delay on the part of the Subcontractor, Citnalta shall pay Subcontractor the additional direct costs for the premium portion of the incurred overtime labor cost but shall not pay overhead and profit on this additional cost. Payment hereunder shall not be evidence of the proper performance or progress of the Work, and no payment shall be construed to be acceptance of defective, faulty or improper work or materials.

3.b.iii **Written Order Required.** Any changes, modifications or extension of the Work to be performed herein may only be done by written order specifically describing the work involved and executed by Citnalta and the Subcontractor. E-mails lacking a specific description of the Work and a timeframe for performance shall not be considered a "written order."

3.c **Payment to Sub-subcontractors and Suppliers.** Before Subcontractor begins any work on the Project, Subcontractor shall submit a complete list of sub-subcontractors and material suppliers (heretofore and hereinafter

collectively referred to as "Sub-subcontractors") that will be used in connection with the performance of the Work. Such list shall include a description of the scope of Sub-subcontractor's work and/or the materials it will be supplying, the Sub-subcontractor's name, mailing and office address, telephone and the name of a contact person with knowledge of Sub-subcontractor's account. At Citnalta's discretion, Subcontractor shall provide, on a quarterly basis or as frequently as requested by Citnalta, letters of good standing from suppliers and labor unions, along with payment information verifying that all obligations to such parties are current. With each application for payment, and as a condition precedent to receipt of any payment from Citnalta, Subcontractor shall submit a list identifying all Sub-subcontractors whose charges to Subcontractor are included within the portion of the Work covered by the application for payment together with a description of the labor and materials provided, certified payroll reports and invoices for materials and supplies. As a further condition precedent to payment from Citnalta, Subcontractor shall for each Sub-subcontractor identified as having charges included within the portion of the Work covered by any application for payment, provide lien waivers and/or releases in a form acceptable to Citnalta from such Sub-subcontractors for such charges. Upon request, Subcontractor shall provide a wage rate breakdown for any labor and or trades working on the Project. Subcontractor shall keep full and accurate daily records of all work required for the Project herein, including materials ordered and shall submit such records to Citnalta upon request. Subcontractor, upon demand of Citnalta shall submit evidence of payment of all its bills and wages. Citnalta may, at its options, withhold payments to Subcontractor, if it is advised or has reasonable grounds to believe, that invoices or claims are outstanding against Subcontractor from its Sub-subcontractors or from Subcontractor's labor or material suppliers. Subcontractor agrees that Citnalta, at Citnalta's sole discretion, may contact any Sub-subcontractor directly regarding the status of Subcontractor's account with such Sub-subcontractor. Title to any material purchased by Subcontractor shall be transferred to Contractor upon payment for the material.

3.d **Payment Creates a Trust Fund**. Subcontractor will receive any and all payments made by Contractor to Subcontractor as a trust for the benefit of Subcontractor's subcontractors, suppliers, laborers and vendors, to be applied first to the payment of all of its laborers, material suppliers, Sub-subcontractors and others responsible for the Work for which payments are made, including sufficient funds so that all applicable taxes, insurance, prevailing wages and union benefits are paid. Furthermore, it is agreed that all monies to be become due under the Subcontract, including but not limited to retainage earned but unpaid, proceeds of claims for extra compensation of any kind or nature, and all other monies potentially payable to the Subcontractor under the Subcontract, are similarly impressed with the same trust recited in the foregoing sentence, which shall be enforceable whether or not Subcontractor has segregated or separately accounted for the funds, or rights to receive funds. Subcontractor's obligations as Trustee under this paragraph are not assignable or delegable.

3.e **Right to Payment by Joint Check**. Contractor expressly reserves the right to make payment by joint check to the Subcontractor and its Sub-subcontractors, suppliers, or any person or entity who has potential lien rights or a right of action against Contractor or its surety under any law. Contractor reserves the right to determine the manner and amount of payment to be made. Contractor may recover the amount thereof from Subcontractor directly or deduct such payment from any amount due or to become due under this Agreement.

3.f **Right to Pay Sub-subs Directly.** At Contractor's sole discretion, payments may be made by check payable directly to Subcontractor's Sub-subcontractors and other creditors. If Subcontractor fails to promptly pay, when due, for any labor, union benefits, services, materials or equipment furnished in connection with the performance of the Work, or fails to make other payments required by this Agreement, Contractor, after three (3) days' written notice to Subcontractor, may make such payments directly to the subject creditor and recover the amount thereof from Subcontractor directly, or deduct such payments from any amount due or to become due under this Agreement.

3.g **Final Payment.** Subject to the express conditions of 3.b., final payment to Subcontractor shall be made thirty (30) days after all of the Contract work is completed and accepted upon the condition that final payment is received by Citnalta from the Owner and provided the Subcontractor's Work described in this Agreement is fully

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completed and performed in accordance with the Contract Documents and is satisfactory to the Owner, its representatives, and Citnalta. In addition, it shall be a condition precedent to final payment by Citnalta Construction Corp. that Subcontractor provide a general release and satisfactory proof of payment by Subcontractor of each and every obligation in the performance of its obligations under this Agreement and provide satisfactory proof that all claims and demands in connection with Subcontractor's work have been discharged. Final payment is also conditional upon Subcontractor providing a signed Citnalta final payment waiver. Citnalta shall hold Subcontractor liable for any and all claims received after Subcontractor's final payment.

4. **Payment and Performance Bonds. NOT USED**

5. **Schedule and Performance of the Work.** Subcontractor shall commence Work immediately following Citnalta's order to do so, whether written or oral, and progress so as not to delay or interfere with Citnalta's operations and to enable Citnalta to complete its work not later than the time limit specified in the Contract Documents. Upon request by Citnalta, Subcontractor shall furnish a detailed work schedule or shall make appropriate notes to a schedule prepared by Citnalta or the Owner. All Work shall be completed as per the approved Project schedule. The Subcontractor will coordinate and cooperate with all other subcontractors on the Project. Subcontractor shall advise Citnalta promptly in writing of any delay in the delivery of material ordered. If the progress of the Work or the Project is delayed by any fault or neglect or act or failure to act of the Subcontractor, then the Subcontractor shall at its own cost and expense, work such overtime as may be necessary to make up for the time lost in completion of the Work and of the Project due to such delay. Should the Subcontractor fail to make up for the lost time by reason of such delay, Citnalta shall have the right to utilize its own forces, cause other subcontractors on the Project to work overtime, engage other contractors and to take whatever action it deems necessary to avoid delay in the completion of the Work and of the Project, and the cost and expense of such overtime and/or such other action shall be borne by Subcontractor. Subcontractor agrees that in the event there is a monetary assessment of any nature charged Citnalta for failure to complete Work within the specified time and that such failure is due, in whole or in part, to Subcontractor's Work hereunder, the Subcontractor shall be fully responsible for said charge and for any diminution in the amount to be paid to Citnalta because of the failure of timely completion.

5.a **Time is of the essence**. See Rider A - Liquidated Damages (attached hereto) is clearly made part of this Agreement and any liquidated damage costs assessed to Citnalta attributable to the Subcontractor will be borne by the Subcontractor. Furthermore, any and all overtime, weekend or shift work which the Project may require is deemed part of this Agreement.

5.b **Failure to Prosecute.** In the event that the Work shall not commence or be prosecuted as provided in this Agreement or if the Subcontractor shall fail and refuse to comply with any of the written orders or directions of the Owner or of Citnalta, either as to rate of progress, force of men, quantity of material or equipment, or performance of extra or additional work, or omission of work, or as to any other matter, or the Subcontractor shall cause by any actions or omissions the stoppage, delay or interference with the work of Citnalta or of any other contractors, or shall fail to make, when due, payments to its Sub-subcontractors, laborers, material suppliers, and others to whom it may be indebted, or in the event any provision of the Bankruptcy Act of the United States of America shall be invoked by or against the Subcontractor, or in the event that Subcontractor shall become insolvent, make an assignment for the benefit of creditors or a receiver shall be appointed for its property or any judgment is taken against the Subcontractor and execution issued thereon, such actions shall be considered a material breach of this Agreement and cause for termination. Citnalta may, after three (3) days written notice to Subcontractor and upon Subcontractor's failure at that time to do so, have the right to terminate and take over this Agreement and complete the Work under it or may employ others to complete the Work to be done under it and charge the cost, pursuant to this paragraph 5.b, incurred as a result thereof to Subcontractor.

5.c **Notice to Cure.** Subcontractor understands that there is an extremely short time duration for the Work under this Agreement. Accordingly, Subcontractor understands and agrees that Citnalta may provide it with three

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(3) day's written notice to cure any defaults. The Subcontractor agrees that this time period is a reasonable time period under this Agreement. In any such completion either by Citnalta or by others, Citnalta or the others shall have the right at no cost to Citnalta or the others to use any plant, tools and equipment, materials or supplies provided by Subcontractor for performance of this Agreement until all Work to be done hereunder shall have been completed. Subcontractor shall be liable for and shall pay the difference to Citnalta for any increase the amount set forth in this Agreement to complete the Work plus an additional twenty-one percent (21%) for overhead and profit. In addition, Subcontractor shall be liable for and shall pay any legal fees and costs, liquidated damages or other expenses resulting from its failure to properly prosecute or complete the Work.

5.d **Bankruptcy.** If Subcontractor intends to file a petition under the Bankruptcy Code, then Subcontractor shall notify the Contractor in writing: (1) prior to filing such petition under the Bankruptcy Code and (2) upon the actual filing of such petition. Subcontractor acknowledges and agrees that all monies due, or to become due, of any kind or nature under the Subcontract, whether earned or unearned, are agreed to be trust funds for the benefit of Subcontractor's sub-subcontractors, suppliers and laborers. Subcontractor agrees that at all times until this Subcontract shall have been fully performed by the Subcontractor and all Work thereunder finally accepted by the Project Owner, and all amounts due and payable by Subcontractor or its estate or its successor hereunder have been finally paid, Contractor is a creditor of Subcontractor within the meaning of the U.S. Bankruptcy Code and any other similar state statute or regulatory scheme, and is entitled to all notices that such a creditor is to receive and may exercise all rights that such a creditor may exercise under applicable statutes, rules or regulations. In any bankruptcy or insolvency proceedings of Subcontractor in which Contractor is a creditor, Contractor shall be entitled, as part of its claim, to its legal fees, costs, and disbursements in asserting its claims and protecting its rights, claims and positions in such proceeding. Subcontractor represents and warrants, as an inducement to Contractor to enter into this Subcontract, that Subcontractor is not now insolvent, and will not be rendered insolvent by its undertaking of the obligations set forth in this Subcontract; as used in this sentence, the term "insolvent" incorporates all meanings and tests for insolvency utilized in the U.S. Bankruptcy Code or in any state law or statute to determine insolvency.

5.e **Bankruptcy - Interim Remedies**. If the Subcontractor is not performing in accordance with the Project Schedule at the time a petition in bankruptcy is filed, or at any subsequent time, the Contractor, while awaiting the decision of the Subcontractor or its trustee to reject or to assume this Agreement and provide adequate assurance of its ability to perform, may avail itself of such remedies under this Agreement as are reasonably necessary to maintain the Project Schedule. Subcontractor acknowledges and agrees that that it will not oppose a motion to lift any "stay" imposed by the bankruptcy court so that the Contractor can take emergency actions or any other steps that will prevent it from breaching the terms of the Contract. The Contractor may offset against any sums due or to become due to the Subcontractor all costs incurred in pursuing any of the remedies provided including, but not limited to, reasonable overhead, profit and attorneys' fees. The Subcontractor shall be liable for the payment of any amount by which such expense may exceed the unpaid balance of the amount of this Agreement.

6. **Maintenance and Protection of the Work.** The Subcontractor shall take necessary precautions to properly protect the Work and the work of others from damage caused by the Subcontractor's operations. Should the Subcontractor cause damage to the Work or property of the Owner, the Contractor or others, the Subcontractor shall promptly remedy such damage to the satisfaction of the Contractor, or the Contractor may remedy the damage and deduct its cost from any amounts due or to become due the Subcontractor, unless such costs are recovered under applicable property insurance. Subcontractor shall be under the same obligation to Citnalta to maintain the Work as Citnalta is obligated to maintain and protect such work for the Owner under the Contract Documents and Subcontractor shall perform such maintenance at Subcontractor's own expense. Subcontractor shall also be fully responsible for: (1) physical damage to or destruction of the Work, (2) any defective or improper Work or material, (3) any damages caused thereby, (4) the repair or replacement of such Work, materials or

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damages which repair or replacement shall be satisfactory to the Owner and Citnalta, and (5) the theft or loss of materials. In the event the Contract Documents provide for retention of any amount as guaranty for maintenance or repair of Work to be performed under this Agreement, a similar amount shall be retained by Citnalta from Subcontractor in the same manner as provided for in the Contract Documents.

6.a **Tools and Materials Stored on Site.** Subcontractor must relocate, remove, or replace its tools or materials on the Project site as deemed necessary by the Contractor's Project Superintendent. It is understood that Subcontractor shall relocate, remove, or replace its tools or materials as necessary to comply with the Project Schedule.

7. **Compliance with Laws**. The Subcontractor shall obtain and pay for all necessary permits and licenses pertaining to its Work. Subcontractor acknowledges that it has read and understands the Contract between the Owner and the Contractor and agrees to adhere to the terms of the Contract, particularly as they relate in any way to the Work undertaken herein, including but not limited to, the obligation to comply with all applicable Federal, State, Municipal and local laws, ordinances, codes, rules, regulations, standards, orders, notices and requirements, including but not limited to those relating to safety, discrimination in employment, fair employment practices, immigration laws, or equal employment opportunity, and whether or not provided by the Contract Documents, without additional charge to Citnalta and shall also be responsible for and correct, at its own cost and expense, any violations thereof or resulting in connection with the performance of its Work. Subcontractor acknowledges that all subcontractors performing construction work on public work are required to register with the New York State Department of Labor under Labor Law 220-I and that registration is a prerequisite to performing work on the site. Pursuant to the Federal and New York State False Claims Acts, Subcontractor is prohibited from knowingly submitting a false or fraudulent claim for payment or approval to Citnalta for inclusion in a payment request from any federal, state or local authority or agency. Each requisition for payment shall constitute a representation and warranty that Subcontractor is in compliance with applicable law. The Subcontractor shall at any time upon demand furnish such proof as Citnalta may require showing such compliance and the correction of such violations. All contractors and subcontractors submitting bids or performing construction work on public work projects or private projects covered by Article 8 of the Labor Law are required to register with the New York State Department of Labor ("**NYSDOL**") under Labor Law Section 220-I. Private projects subject to Article 8 of the Labor Law include those covered by Labor Law Sections.

8. **Use of Project Management Software.** At Contractor's sole discretion, Subcontractor may be required to use Contractor's project management software as a project management tool. In the event Contractor requires use of its project software, Subcontractor shall be advised by Contractor as to the project management items it shall apply to and may include but shall not be limited to; payment applications, RFIs, submittals, safety documentation and any other Project related documents.

8.a. **3D BIM Modeling.** All Subcontractor coordination drawings shall be prepared and submitted in 3D BIM Modeling.

9. **Business Ethics and Conduct.** Citnalta is committed to the highest ethical conduct and has adopted a Code of Business Ethics and Conduct, a copy of which is available at the Project site or upon request that is incorporated into this Agreement, which all Citnalta employees and subcontractors must strictly adhere to. All suspected violations of the Code or other potentially illegal or unethical behavior by anyone working on or in relation to a Project Citnalta is working on must be reported to Citnalta's Compliance Officer or President. Subcontractor is similarly required to advise Citnalta of any action by any entity or person associated with the Project that Subcontractor believes to be a violation of any applicable law, rule or regulation or that constitutes unethical conduct. Subcontractor's failure to either report a suspected violation or Subcontractor's violation of any law shall be considered a material breach of this Agreement. If required by the Owner, Subcontractor must adopt and enforce its own code of business ethics and conduct.

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10. **Prior Approval of Subcontractor and Sub-subcontractors.** This Agreement shall not become binding unless Subcontractor is approved by the Owner. In addition, any Sub-subcontractors hired by Subcontractor require prior approval by Citnalta before they begin any Work. Subcontractor shall provide Citnalta copies of all sub-subcontracts and purchase orders it enters into relating to the Work. Citnalta retains the unilateral right to remove any Sub-subcontractors from the Project when circumstances warrant such removal.

10.a **Subcontractor's Employees.** Citnalta is committed to the concept that each employee is entitled to a working environment that is free of harassment and offensive behavior. Harassment and offensive behavior are strictly prohibited by Citnalta and will not be tolerated. Harassment and/or offensive behavior prohibited by this Agreement includes but is not limited to requests to engage in illegal, immoral, or unethical conduct, or negative comments or actions based on an employee's, customer's or a member of the public's race, creed, color, age, sex, national origin, marital status, sexual orientation, status with regard to public assistance, or the presence of a physical, sensory or mental disability. Subcontractor agrees to be bound by all applicable Federal, State, City and other ordinances, statues, regulations and rules relating to equal opportunity of employment including but not limited to the requirement(s) to provide annual interactive sexual harassment training to all employees and evidence thereof and will practice no discrimination in violation thereof and to ensure that Sub-subcontractor's shall comply with this Agreement.

10.b **Responsibility for Acts of Sub-subcontractors and Employees.** Subcontractor shall maintain discipline among its employees, including those of its Sub-subcontractors, and assumes responsibility for the negligent acts or omission or commission of its employees and Sub-subcontractors.

10.c **Subcontractor's Compliance with MWLBE Subcontracting and Affirmative Action Requirements.** Subcontractor acknowledges and agrees that it shall be under the same obligation to make and demonstrate good faith efforts to achieve the SCA's goal that a minimum of thirty percent (30%) of all subcontracted work to be performed by SCA and/or New York City ("**City**") certified minority, women and/or local based enterprises ("**MWLBE**s") pursuant to Appendix K to the SCA's Invitation to Bid. In addition, Subcontractor understands and agrees to comply with and assist Citnalta in implementing all affirmative action policies and requirements set forth in the Contract Documents, and all applicable requirements set forth in applicable Federal, State and Municipal statutes. In the event Subcontractor or any Sub-subcontractor has represented itself as an MBE, LBE, or WBE and/or is contributing to any affirmative action goals required by the Contract Documents, Subcontractor and/or its Sub-contractor(s) must perform a "commercially useful function." At Citnalta's sole discretion, Subcontractor must within five (5) business days from receipt of request, deliver to Citnalta copies of all payroll and other financial records for an audit of whether Subcontractor's and its sub-subcontractors are in full compliance with the applicable MWLBE subcontracting and affirmative action requirements. Failure of the Subcontractor to comply with the applicable MWLBE subcontracting and affirmative action requirements or to deliver the payroll and financial records to Citnalta, as required above, is a material breach of this Agreement. Citnalta may also terminate this Agreement if it has a reasonable belief that Subcontractor or a Sub-subcontractor is not in full compliance with the MWLBE subcontracting and affirmative action requirements it has committed to.

10.d **Subcontractor's Payment of Prevailing Wage Requirements**. Subcontractor understands and agrees that it as well its Sub-subcontractors will comply with any applicable regulations or requirements governing prevailing wages as required by the Contract. On a weekly basis, for each week that the Subcontractor has any employees or Sub-subcontractors on the Project, Subcontractor shall provide Citnalta with original certified payroll reports together with an extra copy. At Citnalta's sole discretion, Subcontractor must within five (5) business days from receipt of request, deliver to Citnalta copies of all payroll and other financial records for an audit of whether its payments or payments made by the Sub-subcontractors to their respective employees are in full compliance with prevailing wage law. Failure of the Subcontractor or its Sub-subcontractors to comply with

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prevailing wage law or to deliver the payroll reports and records to Citnalta, as required above, is a material breach of this Agreement. Citnalta may also terminate this Agreement if it has a reasonable belief that the Subcontractor or a Sub-subcontractor is not complying with the prevailing wage law.

10.e **Union Labor.** Subcontractor agrees that it shall employ union labor only. Subcontractor agrees that it shall pay each person for his or her appropriate trade in accordance with the union wage scale at a rate not less than and in accordance with schedules, rates and benefits set forth by the trade labor union having jurisdiction for that work. Subcontractor shall provide Citnalta a copy of the wage and welfare bond it provided to the union(s) upon execution of the Subcontract. In the event of a discrepancy between the prevailing wage law requirements and the union wage rate and rules, Subcontractor shall be required to comply with the prevailing wage rate requirements as set forth by the New York State and City Comptroller(s). Subcontractor acknowledges receipt of the union wage schedule and understands its application to its Work under this Agreement. In the event of a conflict or discrepancy in classification, Subcontractor shall pay the person the classification with the higher wage rate. Citnalta shall have the right to inspect Subcontractor's books, payroll and accounts from time to time to verify that union wages are being paid by the Subcontractor. Weekly submission of two copies of a certified weekly payroll report for the Subcontractor and any sub-subcontractors shall be a condition precedent to any payment by Citnalta to the Subcontractor. If the Subcontractor fails to comply fully with the provisions of this paragraph, Citnalta may, in its own discretion, or under the direction of the Owner, withhold any payments or advances due the Subcontractor until the Subcontractor establishes to the satisfaction of Citnalta that all laborers and mechanics or other persons employed hereunder have been paid the proper union wages. Furthermore, the Subcontractor shall provide the Contractor with copies of union benefit reports.

10.f **Employee Benefits.** Subcontractor shall pay all taxes, assessments and premiums under the Federal Social Security Act, any applicable Unemployment Insurance, Workers' Compensation, Disability Benefits, FICA, Sales & Use Tax, Personal Property Tax, or any other applicable taxes now or hereafter in effect, payable by reason of or in connection with any part of Subcontractor's Work and shall furnish reports and information to the appropriate agencies as required, the same as though the Subcontractor was in fact Citnalta. Subcontractor will furnish Citnalta with Employer's Registration Number assigned to Subcontractor by the State and Federal Governments.

10.g **Survival Beyond Termination of this Agreement**. Subcontractors' obligations to comply with paragraph 8 of this Agreement shall survive beyond the termination of this Agreement. Subcontractor shall maintain all applicable records for a period of seven years following completion of this Agreement.

11. **Submissions**. Subcontractor shall, within ten days of the execution of this Agreement, provide all submittals pertaining to their Work and as per all applicable Specification sections. Where the Contract Specifications refer to information contained in, on, as or by the Drawings, which are not provided within the Contract Documents, the Contractor shall prepare such Drawings as necessary to fully depict the Work and when applicable they shall be incorporated into the Contract Documents. In the event Subcontractor makes an error in its initial submission, including shop drawings, and such submission is approved by the Owner or the Contractor, such approval shall not relieve the Subcontractor of its obligations to comply with the Contract Documents.

In the event Subcontractor intends to request a "substitution" it must be submitted in compliance with all Contract documents addressing product substitutions and in a manner that will allow installation to commence as per the Project schedule. Substitutions will be subject to approval by the Owner. Any costs incurred by use of a Subcontractor's substitution shall be borne by the Subcontractor.

12. **Warranty.** Subcontractor warrants and represents that all equipment and material furnished on the Project shall be in accordance with the Contract Documents and that such equipment and material shall be first rate and shall be fit and proper for the intended use. The Subcontractor warrants and represents that there is a guaranty on all of its Work performed and material furnished for a period of the longer of one (1) year following final completion and acceptance of the Work to be performed herein or the period provided in the Contract Documents.

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Where the Contract Documents require a bond or guaranty for the Work performed by Subcontractor, Subcontractor shall provide same as part of its Work under this Agreement at no additional cost to the Contractor.

13. **Cleaning Up and Deliveries.** Subcontractor shall remove all rubbish caused by its Work on a daily basis or as requested by Citnalta or the Owner. Subcontractor shall keep the Project site clean and free from the accumulation of excess materials, equipment, and any debris and rubbish resulting from the execution of its Work at all times. Subcontractor shall remove excess material, equipment, debris and rubbish on a daily basis. If Subcontractor does not accomplish such cleanup and removal Citnalta reserves the right to clean up and remove excess equipment, debris and rubbish from the Project site and charge the cost of such cleanup and removal to the Subcontractor. Prior to the delivery of any equipment and material to the Project site, Subcontractor shall carefully unbox, unpack, or uncrate all equipment and material, and deliver such equipment and material at the location on the Project site as directed by the Citnalta or the Owner. Subcontractor shall be responsible for removing any rubbish, waste, or debris on the Project site in connection with Subcontractor's delivery of such equipment and material and shall relocate such equipment or material if requested by Citnalta or Owner. Subcontractor acknowledges and agrees that due to the compressed schedule and limited space on the Project site, it may be necessary for Subcontractor to make multiple deliveries.

14. **Sustainable Requirements.** The Subcontractor shall implement practices and procedures to meet the Project's sustainable and/or LEED requirements, if any. The Subcontractor shall ensure that the requirements related to these goals, as defined in the Contract Documents, are implemented to the fullest extent. Substitutions or other changes to the Work shall not be proposed by the Subcontractor if such changes compromise the required Sustainable Design Performance Criteria.

15. **Safety.** Subcontractor understands and agrees that Subcontractor's full compliance with the Contractor's Health and Safety Plan ("**HASP**") is a material term under this Agreement. Citnalta's HASP will be available at the Project site or provided upon Subcontractor's request. It is understood by the Subcontractor that the HASP is incorporated by reference to this Agreement. If, however, any provision of the Contract Documents, the Subcontractor's Health and Safety Plan, or any safety provision in this Agreement irreconcilably conflicts with a provision of the HASP, the provision imposing the greater duty or obligation on the Subcontractor shall govern. Subcontractor agrees that it is solely responsible for compliance with all applicable safety laws, rules and regulations applying to performance of its Work including the Occupational and Safety Health Act ("**OSHA**"), New York City DOB, Fire Department, DOT, NYC DEP, NYS DEC, all applicable codes, and of the Owner, and shall strictly comply therewith. Subcontractor is required to perform the Work in a safe and reasonable manner and to designate an employee who shall act as the Subcontractor's "competent person" as defined by OSHA with a duty to prevent accidents. Unless otherwise identified by the Subcontractor in writing to the Contractor, the designated safety representative shall be the Subcontractor's Project superintendent.

15.a **Safety measures.** The Subcontractor shall implement appropriate safety measures pertaining to the Work and the Project, including establishing safety rules, posting appropriate warnings and notices, erecting safety barriers and establishing proper notice procedures to protect persons and property at the Project site and adjacent to the Project site from injury, loss or damage. Establishment of a safety program by the Contractor or any other subcontractors shall not relieve the Subcontractor of their safety responsibilities. The Subcontractor shall establish and submit for approval its own safety program implementing safety measures, policies and standards conforming to those required or recommended by governmental and quasi-governmental authorities having jurisdiction and by the Contractor and Owner, including, but not limited to requirements imposed by the Contract Documents and the HASP.

The Subcontractor shall comply with the safety measures outlined in the HASP specifically including but not limited to the following:

(i) Fall Protection Requirements:

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- For steel erection 100% tie off required at all times.
- For scaffold erection 100% tie off and Subcontractor must add handrails on scaffolds regardless of height.

(ii) Personal Protective Equipment ("**PPE**") Requirements:

- Cut level 3 gloves at minimum on the Project, all other PPE 100% of the time.
- Welding shields are required to be attached to hard hats.

(iii) Ladder Safety Requirements:

- In accordance with the Ladder Safety Policy in the HASP, if Subcontractor must use a ladder to perform its Work, then Subcontractor shall limit its use of the ladder for the amount of time reasonably required to perform its Work;
- Subcontractor shall use a podium ladder, and
- The weight capacity of the ladder must be 300lbs. and higher, lower weight capacity ladders are not permitted to be used in connection with the Work.

(iv) Power Tool Requirements:

- If Subcontractor is using a power tool to perform its Work, then the power tool used by Subcontractor must include a safety device such as: tool kick-back automatic shut off, safety switch or control that shuts off when the power pressure is released (e.g. a dead man switch), guards, etc.

(v) Accountability Policy:

- Subcontractor must comply with and enforce the Accountability Policy within the HASP.

(vi) Light Duty:

- When reasonably practicable, Subcontractor must offer light duty to any of Subcontractor's employees who cannot perform the Work at full capacity due to injury or illness, and if Subcontractor refuses to offer light duty to such employee, then Subcontractor shall be back charged $5,000 a day until the employee returns to the Project site to perform the Work.

It is understood that the inclusion of Sections 15(a) i-vi above does not preclude Subcontractor from its obligation to review and comply with all safety requirements in the HASP, the Owner's Contract Documents, this Agreement, and under applicable safety law. Subcontractor is responsible for complying with the safety requirements in the HASP, the Owner's Contract Documents, and this Agreement.

The Subcontractor shall be responsible for providing labor that has all safety-related training and/or testing required by the Owner and Owner. The Subcontractor's employees are required to attend and sign in for safety meetings regularly and prior to beginning work on the Project site. The Subcontractor shall comply with the recommendations of insurance companies having an interest in the Project and shall stop any part of the Work which the Contractor deems unsafe until corrective measures satisfactory to the Contractor shall have been taken. The Contractor's failure to stop the Subcontractor's unsafe practices shall not relieve the Subcontractor of the responsibility thereafter. The Subcontractor shall indemnify the Contractor for fines, penalties and any consequential damages incurred by the Contractor as a result of Subcontractor's safety violations, but only to the extent that such fines, penalties and consequential damages are determined to be the Subcontractor's responsibility. The Subcontractor shall seek to avoid injury, loss or damage to persons or property by taking steps to protect: (a) Employees and other persons at the Project site, (b) Materials and equipment stored at the Project site or at offsite locations for use in performance of the Work, and (c) All property and structures located at the Project site and adjacent to Work areas, whether or not said property or structures are part of the Project or involved in the Work.

15.b. **Required Training.** All employees of Subcontractor on Citnalta project sites must have appropriate training for the tasks being undertaken. Workers must comply with all codes regarding required training. Workers

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and Supervisors must follow Local Law 196 of 2017 Site Safety Training ("**SST**") as referenced in Chapter 33 of the NYC DOB Building Code. Personnel must carry an SST Worker or SST Supervisor Card and present it upon request.

All employees of Subcontractor must receive an Orientation as required by Local Law 206 of 2017 and as referenced in Chapter 33 of the NYC DOB Building Code. The Orientation must be given by a "Qualified Person" employed by the permit holder.

The definition of a Qualified Person is a person who by possession of a recognized degree, certificate or professional standing, or who by knowledge, training and experience, has demonstrated his or her ability to solve or resolve problems related to the subject matter, the work or the project. Each Subcontractor employee employed or otherwise engaged at such site by the permit holder or performing subcontracted work for or on behalf of such permit holder shall receive a site safety orientation before such employee commences any construction or demolition work at such site. Each Subcontractor employee, employed or otherwise engaged at such site by the permit holder or performing subcontracted work for or on behalf of such permit holder shall receive a site safety refresher if such employee (i) has performed construction or demolition work at such site for one year or more and (ii) one year or more has elapsed since such worker received a site safety orientation or refresher with respect to such site.

All Subcontractor employees must receive a Pre-Shift Safety Talk by a Competent Person prior to the start of every workday as per Local Law 204 of 2017 as referenced in Chapter 33 of the NYC DOB Building Code. The definition of a "competent person" is one who is capable of identifying existing predictable hazards in the surroundings or conditions that are unsanitary, hazardous or dangerous, and who has authorization to take prompt corrective measures to eliminate such hazards.

Pre-shift safety meetings shall be conducted at the beginning of each Subcontractor employee's shift, but before such employee commences any construction or demolition work in such shift, by a Competent Person designated by the permit holder, or where so authorized by the permit holder, by a Competent Person designated by the Subcontractor. Such Competent Person shall have the ability to communicate with each worker who takes part in such meeting. The Safety Talk shall include a review of activities and tasks to be performed during the shift, including specific safety concerns or risks associated with completing such work.

The Subcontractor shall be required to present a copy of the Pre-task Meeting sign in log to the Citnalta Superintendent or Safety representative daily. Such log shall include:

1. The date and time of the meeting;
2. The name, title and company affiliation of the Competent Person who conducted the meeting along with the person's signature; and
3. The name, title and company affiliation of the Competent Person who conducted such meeting, along with such person's signature.

The Subcontractor will keep all Pre-Task Meeting records available at the project site for review as requested.

15.c **Use of Cell Phones and Handheld Devices Prohibited on Project Site.** The use of cell phones and any other handheld electronic devices by Subcontractor and its employees is not permitted while working on the Project site. In the event, it is necessary to use a cell phone or handheld device for any reason, Subcontractors' employees shall be required to use the phone at a designated location on the Project site or request and obtain permission to use device from the Contractor's Project Executive. In the event the use of a cell phone is required in relation to performance of the Work, Subcontractor's employee shall be sensitive to the danger of cell phone use while working on an active project site.



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Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

15.d **Use of Explosives.** The use of explosives is not permitted absent express authorization from any applicable government agencies, the Owner and Citnalta. However, in the event such use is authorized the Subcontractor shall exercise extreme care in carrying out any of the Work which involves explosive or other dangerous methods of construction or hazardous procedures, materials or equipment. The Subcontractor shall use properly qualified individuals or entities to carry out the Work in a safe and reasonable manner so as to reduce the risk of personal injury or property damage.

15.e **Required Notices.** The Subcontractor shall comply with the Contract's notice requirements, and all applicable rules, regulations, orders and other lawful requirements established to prevent injury, loss or damage to persons or property. Subcontractor shall, immediately notify Contractor of any accident or occurrence resulting in damage to property of another, or injury to the Subcontractor's employees or third parties and within four hours from the occurrence thereof, notify Citnalta in writing of any accident or injury involving any person employed by Subcontractor or any of its Sub-subcontractors, of any accident involving personal injury requiring a physician's care, any property damage exceeding One Hundred Dollars ($100.00) in value, or any failure that could have resulted in serious personal injury, whether or not such an injury was sustained. The Subcontractor shall submit a written report of the accident or occurrence on a form acceptable to Citnalta and/or as required by the Contract Documents and a copy of any reports prepared by the Subcontractor for submission to Subcontractor's insurance company.

15.f **Remedying Damage.** The Subcontractor is required to promptly remedy any loss or damage caused to the Work, materials, equipment and property referred to above, but only to extent caused in whole or in part by the Subcontractor and/or persons or entities performing work for or on behalf of the Subcontractor, regardless of tier, who have furnished labor, materials or services relating to the Subcontractor's Work and for whose acts the Subcontractor may be liable.

15.g **Duty Not to Overload Structure.** The Subcontractor has an alternative duty not to overload the structures or conditions at the Project site and shall take reasonable steps not to load any part of the structure, or site so as to give rise to an unsafe condition or create an unreasonable risk of personal injury or property damage. The Subcontractor shall have the right to request in writing, from the Contractor, loading information concerning the structures at the Project site.

15.h **Safety Data (SDS) Sheets.** The Subcontractor shall submit to the Contractor all Safety Data Sheets required by law for materials or substances necessary for the performance of the Work. SDS sheets obtained by the Contractor from other subcontractors or sources shall be made available to the Subcontractor by the Contractor.

15.i **Fines for Violating Safety Regulations.** Subcontractor shall be issued a $1,000 fine each time one of its employees disregards a safety regulation. These fines shall be backcharged to the Subcontractor and sent to a local charity.

16. **Indemnity.** Subcontractor agrees to the fullest extent permitted by law, to indemnify, defend, hold harmless the Contractor, Owner, all applicable additional indemnities, if any, their officers, directors, agents, employees and partners (hereinafter collectively "**Indemnities**") from and against any and all claims, suits, damages, liabilities, professional fees, including attorneys' fee costs, expenses and disbursements related to death, personal injuries, property damage (including loss of use thereof) or the alleged violation of any laws, statutes, rules or ordinances, brought or assumed against any of the Indemnities by any person, entity or firm, arising out of or in connection with or as a result of or as a consequence of the performance of the Work undertaken by the Subcontractor as well as any additional work, extra work or add on work, whether or not caused in whole or in part by the Subcontractor or any person or entity employed, either directly or indirectly, by the Subcontractor including any Sub-subcontractors and sub-tier contractors thereof and their employees. The parties expressly

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Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

agree that this indemnification agreement contemplates: (1) full indemnity in the event of liability imposed against the Indemnities without negligence and solely by reason of statute, operation of law or otherwise; and (2) partial indemnity in the event of any actual negligence on the part of the Indemnities either causing or contributing to the underlying claim even if such negligence is expressly exempted from Subcontractor's obligation to indemnify in which case, indemnification will be limited to any and all liability imposed over and above that percentage attributable to actual fault on the part of the Indemnities whether by statute, operation by law or otherwise. Where partial indemnity is provided under this Agreement, attorneys' fees, costs, court costs, expenses and disbursements shall be indemnified on a prorate basis. Recovery of attorneys' fees and costs hereunder shall include all those attorneys' fees and disbursements incurred in defense of any underlying claim, in the enforcement of this indemnity agreement, in the prosecution of any claim for indemnification hereunder and in pursuit of any claim for insurance coverage that the Subcontractor is required to procure. Subcontractor shall cause all subcontract agreements it enters into to include this indemnification clause so as to ensure that the Contractor and all Indemnities hereunder shall have the same protection from sub-subcontractors as is afforded by the Subcontractor. In addition, this indemnity obligation extends to:

(a) All loss or damage, and reimburse Citnalta for any loss, cost, damage and expense, including attorney's fees and costs, to which Citnalta or the Owner may be put as a result of claims made, or litigation begun on account of any alleged violation or infringement of any letters, patent or other proprietary rights arising out of the works or methods, materials or items used by Subcontractor.

(b) All claims or damage arising out of any claim, lien or other demand or suit of any kind commenced by any Subcontractor or Sub-subcontractor of Citnalta, on account of non-payment by the Subcontractor or Sub-subcontractor of any funds alleged to be owing to any material supplier or laborer, including any prevailing wage or union benefit claims.

(c) In the event that the Contract requires the provision of professional design services, certifications, and/or approvals as part of the Work, to the extent such Work is within the scope of the Work of this Agreement, Subcontractor assumes responsibility and liability to the fullest extent for any and all claims and/or damages of any nature or character whatsoever relating to or arising out of the performance of such professional design services or issuances of such certifications and/or approvals; and to the fullest extent permitted by law, Subcontractor agrees to defend, indemnify, and hold harmless the Contractor, its surety, and the Owner from and against all claims, demands, liabilities, interest, loss, damage, fines, penalties, attorney's fees, costs, and expenses of whatsoever kind or nature, including property damage or for personal injuries to any and all persons, (whether such persons are employees of the Contractor or employees of Subcontractor, or employees of Sub-subcontractors, or others), relating to or arising out of the performance of such professional design services or issuances of such certifications and/or approval.

16.a **Payment to the Extent Negligent.** In the event the Contractor is determined to be any percent negligent in any verdict or judgment, then, in addition to the above, Subcontractor's obligation to indemnify Contractor and any other Indemnities for any payment, judgment settlement, mediation or arbitration award shall extend to the percentage of negligence of Subcontractor or anyone directly or indirectly engaged or retained by it or anyone else for whose acts the Subcontractor may be liable in connection to such claim, damage, loss and expense.

16.b **Indemnity Obligation Not Limited by Employee Benefits Acts.** In any and all claims against the Contractor and any other Indemnities by any employee of Subcontractor, the indemnification obligation under this paragraph shall not be limited by any limitation of amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' compensation acts, disability benefit acts or other employee benefit acts.

16.c **Indemnity Obligation for Use of Contractor's Material or Equipment**. Subcontractor shall take all safety precautions and shall comply with all applicable laws, rules and regulations of all governmental and quasi-governmental authorities for the safety of persons or property in connection with the use of any Citnalta material

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or equipment. In consideration of Citnalta permitting Subcontractor and its employees to use its material or equipment Subcontractor shall indemnify, hold harmless and defend Citnalta and any of its respective owners, agents, or employees (the "Indemnified Parties") against and from any damage, liability, cost expense, claim, demand, and/or penalty (including without limitation reasonable attorney's fees and disbursements paid and/or incurred in defending against any such loss, damage, liability, cost, expense, claim, demand and/or penalty whether or not liability is imposed or in enforcing the provisions of this indemnity) based upon or resulting from any alleged personal or property damage as a result of Subcontractor and its employee's use of Citnalta's material or equipment. Without limiting the generality of the foregoing, Subcontractor agrees and acknowledges that this indemnity is intended to be a GENERAL, TOTAL AND COMPLETE indemnity of Citnalta.

16.d **Indemnity Obligation Not Limited by Insurance.** The indemnification obligation under this paragraph shall not be limited in any way by any limitation on the amount or type of insurance required to be provided by or for the benefit of the Contractor as enumerated in paragraph 17 of this Agreement.

16.e **Indemnity Obligation Survives Termination.** The indemnity obligations herein shall survive the termination of this Agreement for any reason and shall survive both the Subcontractor's and Contractor's completion of their respective work on the Project. In all instances, this indemnity obligation shall survive irrespective of whether the Subcontractor's insurance coverage as required by this Agreement has been maintained, changed, canceled or otherwise terminated since the termination of this Agreement or since the Subcontractor or Contractor's completion of their respective work.

16.f **Indemnity Obligation In Addition to Other Rights and Remedies**. The foregoing provisions for the benefit of Citnalta shall be in addition to any other rights and remedies of Citnalta and shall not be deemed or construed to in any way diminish or change Citnalta's legal rights and remedies in the event of an abandonment by Subcontractor of the Work or Subcontractor's failure to complete the Work hereunder by the time fixed for its completion or by any other breach of this Agreement by Subcontractor.

17. **Insurance.** As per Article 14 (Insurance and Bonds) of the Owner's Contract, the Owner shall provide an "OCIP" or "Wrap-up" with the insurance coverage and limits described in the Owner's Contract to enrolled Contractors and Subcontractors performing work at the Work Site. Subcontractor must complete the enrollment process for the Owner's OCIP or Wrap-up Program prior to commencing work on the Project. Subcontractor shall provide insurance as per Article 14 of the Owner's Contract. If the Subcontractor is excluded from the OCIP or Wrap-up they will be required to provide both the following insurance for both onsite and offsite. In addition, Subcontractor shall name Citnalta Construction Corp., New York City School Construction Authority, New York City Department of Education, The City of New York, and any additional entities as required by the New York City School Construction Authority as an "**Additional Insured**" on all required insurance. Payment to Subcontractor is conditional upon maintaining compliant and non-expired insurance coverage from the time Work is performed on the Project through the respective payment. Citnalta may withhold payment if Subcontractor's insurance is non-compliant or expired until such time as Subcontractor provides evidence of compliant, active insurance coverage.

1) **Commercial General Liability** (CGL) coverage with limits of Insurance of not less than $2,000,000 each occurrence and $4,000,000 Annual Aggregate. (Offsite operations only)
   a) If the CGL coverage contains a General Aggregate Limit, such General Aggregate shall apply separately to each project.
   b) CGL coverage shall be written on ISO Occurrence form CG 00 01 10/01 or a substitute form providing equivalent coverage and shall cover liability arising from premises, operations, independent contractors, products-completed operations, residential projects (if applicable) and personal and advertising injury.
   c) Contractor, Owner and all other parties who Contractor is required to name as additional insureds by any contract, shall be included as insureds on the CGL, using ISO Additional Insured Endorsement CG 20 10

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(11 85) or a combination of CG 20 10 (10 01) & CG 20 37 (10 01), or an endorsement providing equivalent or broader coverage to the additional insureds. The coverage provided to the additional insureds under the policy issued to the Subcontractor shall be at least as broad as the coverage provided to the Subcontractor under the policy. Coverage for the additional insureds shall apply as primary and non-contributing insurance before any other insurance or self-insurance, including any deductible, maintained by, or provided to, the additional insureds.

d) Subcontractor shall maintain CGL coverage for itself and all additional insureds for the duration of the Project and maintain Completed Operations coverage for itself and each additional insured for at least 3 years after completion of the Work. Subcontractor shall be required to provide a certificate of insurance evidencing completed operations until final payment has been received by the Contractor.

e) CGL coverage shall not have exclusions for residential projects, territorial limitations, bodily injury to employees, work at heights or any other exclusion deemed unacceptable to the Contractor.

2) **Automobile Liability**

a) Business Auto Liability with limits of at least $2,000,000 each accident.

b) Business Auto coverage must include coverage for liability arising out of all owned, leased, hired and non-owned automobiles.

c) Contractor, Owner and all other parties required of the Contractor, shall be included as insureds on the auto policy.

3) **Commercial Umbrella**

a) Umbrella limits must be at least $5,000,000.

b) Umbrella coverage must include as insureds all entities that are additional insureds on the CGL.

c) Umbrella coverage for such additional insureds shall apply as primary and non-contributing insurance before any other insurance or self-insurance, including any deductible, maintained by, or provided to, the additional insured other than the CGL, Auto Liability and Employers Liability coverages maintained by the Subcontractor.

d) Umbrella coverage shall not have exclusions for residential projects, territorial limitations, bodily injury to employees, work at heights or any other exclusion deemed unacceptable to the Contractor.

4) **Workers Compensation and Employers Liability**

a) Employers Liability Insurance limits of at least $1,000,000 each accident for bodily injury by accident and $1,000,000 each employee for injury by disease.

b) Where applicable, U.S. Longshore and Harborworkers Compensation Act Endorsement shall be attached to the policy.

c) Where applicable, the Maritime Coverage Endorsement shall be attached to the policy.

5) **Waiver of Subrogation** – Subcontractor waives all rights of subrogation against Contractor, Owner and Architect and their agents, officers, directors and employees for recovery of damages to the extent these damages are covered by the OCIP, commercial general liability, commercial umbrella liability, business auto liability or workers compensation and employers' liability insurance maintained per requirements stated above.

6) **Notice of Cancellation** – The required insurance policies shall contain a provision that coverage afforded under the policies will not be canceled or allowed to expire until at least 30 days prior written notice has been given to the Contractor.

7) **Professional Liability –** Any Subcontractor performing any work which involves delegation of design and, or design work shall procure and maintain Errors and Omission Liability Insurance for the design Work with a minimum insurance limit of not less than two million ($2,000,000) dollars issued to and covering damage for liability imposed on the Contractor or Subcontractor by this Contract or law arising out of any negligent act, error or omission in the rendering of or failure to render professional services by this Contract. This insurance may be issued on a claims-made policy form and shall be maintained for three (3) years after issuance by the Owner of the Notice of Physical Completion. The policy, at the sole expense of the Subcontractor, shall have extended Discovery Clause coverage of at least three (3) years after issuance by the Owner of the Notice of Physical Completion if the policy is canceled or not renewed. The maximum deduction

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or self-insured retention is $100,000.

8) The Subcontractor shall not sublet any part of its Work without written approval from the Owner or Contractor. The Subcontractor shall not sublet any part of its Work without assuming full responsibility for requiring similar insurance from its subcontractors and shall submit satisfactory evidence to that effect to the Contractor. Each such insurance policy of the sub-subcontractor, except the Workers Compensation Policy, shall include the Owner, the Contractor and all other parties who Contractor is required to name as additional insureds by any contract as an additional insured.

9) Prior to commencing the Work, the Subcontractor shall submit to the Contractor a certificate of insurance, a copy of the Additional Insured Endorsement and a copy of the applicable Other Insurance clause that is part of the Subcontractor's Commercial General Liability Policy. The certificate of insurance must include wording acceptable to the Contractor and the Owner in the Description of Operations Section. A copy of the entire Commercial General Liability policy with all endorsements shall be submitted to the Contractor when requested. All other insurance as may be required by Citnalta or Owner pursuant to the Contract Documents. Subcontractor, prior commencement of Work, shall furnish Citnalta Construction Corp. certificates or, upon request, a copy of policies evidencing that such insurance is in force. Such certificates of insurance shall provide that the said insurance may not be cancelled, terminated or modified without (30) days written advance notice by the insurer to Citnalta Construction Corp. No exclusion shall be permitted if it conflicts with a coverage expressly required in the Contract. In addition, no policy shall contain any exclusion from liability for bodily injury to or sickness, disease or death or any employee of Subcontractor which would conflict with or in any way impair coverage under the contractual liability endorsement of the liability insurance of Subcontractor as assumed by Subcontractor within this Agreement.

18. **Liquidation of Subcontractor's Claim Against Owner:** With respect to any claim by the Subcontractor for additional compensation or an extension of time caused in whole or in part by the Owner, Subcontractor acknowledges and agrees that Citnalta is entitled to timely notification and full disclosure of such claim. Subcontractor must give Citnalta written notice of such claim five (5) working days before the Owner is entitled to receive notice of such claim from Citnalta pursuant to the Contract Documents. If such notice is not possible, Subcontractor must notify Citnalta immediately upon becoming aware of the claim. Subcontractor acknowledges and agrees that no individual employee of Citnalta has the authority, either express, implied or apparent to waive the notice provisions set forth herein with respect to the making of claims for additional compensation, time extensions or otherwise. Subcontractor shall, at its' own cost and expense prepare, assemble, present and prosecute such claim in Citnalta's name and shall be solely responsible for any costs and expenses it incurs in that regard, including fees and expenses for legal representation. Citnalta may, upon the written request of the Subcontractor, appeal or contest on behalf of the Subcontractor from any ruling or decision of the Owner or institute any action or proceeding to recover damages by reason of any affirmative claim by the Subcontractor, or by reason of any deduction or refusal to pay by the Owner, for any reason, involving Subcontractor's Work or performance. In that event, the Subcontractor shall pay all costs attributable thereto and shall render all assistance requested by Citnalta. The Subcontractor shall be bound by the determination of the Owner, or in the event of an appeal or further action proceeding, or by the determination of same, and shall be entitled only to its proportionate share of any mutual net recovery, less overhead and profit to Citnalta and less Citnalta's expenses, attorney's fees and costs in handling said matter. Citnalta's sole obligations with regard to such claim will be to forward it to the Owner following the receipt of the claim from the Subcontractor. Citnalta reserves the right to exercise primary decision-making authority with respect to a claim, including controlling the prosecution of such claim and strategic decisions thereto, if the Subcontractor's claim is related to other claims of either Citnalta or another subcontractor. Subcontractor's sole remedy for its claim shall be limited to the amount of compensation and/or extension of time that the Owner agrees to. The Subcontractor shall have no independent rights or separate claims against Citnalta for further compensation or an extension of time.

19. **Notice of Claim.** Claims by Subcontractor for damages, time extensions or extra and additional compensation by reason of any act or omission of Citnalta, Owner or architect/engineer, shall be made in writing by certified or registered mail to: Citnalta at 1601 Locust Avenue, Bohemia, New York 11716, within the time period provided in the Contract Documents.

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Subcontractor acknowledges and agrees to comply with Section 9.03 - Claims for Delay and Documentation of Damages caused by Delay in the Owner's General Conditions which requires the Contractor to provide the Owner prompt written notice and comply with the requirements of their Contract Specification Progress Schedule Section of the Supplementary Requirements, including but not limited to Section 1.11 Changes, Delays, Claims and Time Extensions of the Contract Specification Progress Schedule Section of the Supplementary Requirements, Section S01311. As such, Subcontractor shall provide written notice to the Contractor, in no event more than two (2) business days' after the commencement of any condition which is causing or threatening to cause such delay or disruption, and the written notice of delay shall include a detailed explanation of the alleged delay, including why and in what respect the condition is causing a delay or disruption. Failure to notify Citnalta in writing of a claim for damages, time extensions or extra and additional compensation within the time and in the manner provided herein and pursuant to the Contract Documents shall constitute a waiver of the claim and no recovery there from shall be granted. In addition, Citnalta's submission to the Owner shall not be perceived as Citnalta's validation of a claim if such claim is rejected by the Owner.

19.a **Notice and Documentation of Conditions Causing Delay.** Subcontractor acknowledges and agrees that Contractor is required to comply with the Contract including Section 9.03 of the Owner's General Conditions Claims for Delay and Documentation of Damages Caused by Delay, and the requirements of the Contract Specification Progress Schedule Section of the Supplementary Requirements, including but not limited to Section 1.11 Changes, Delays, Claims and Time Extensions of the Contract Specification Progress Schedule Section of the Supplementary Requirements, Section S01311. To ensure compliance with Section 9.03 of the Owner's General Conditions, including but not limited to Section 1.11 Changes, Delays, Claims and Time Extensions of the Contract Specification Progress Schedule Section of the Supplementary Requirements, Section S01311, Subcontractor shall be required to promptly notify Contractor in writing, and in no event no less than two (2) days after Subcontractor becomes aware or reasonably should be aware of a condition causing delay. Subcontractor's written delay notice shall include a detailed explanation of the alleged delay, and if the Subcontractor fails to a provide timely, detailed, and written notice, the Subcontractor waives entitlement to a time extension for the alleged delay. Within two (2) weeks of submitting the delay notice, the Subcontractor shall submit a Time Impact Analysis, in accordance with Section 1.11 (c) Changes, Delays, Claims and Time Extensions of the Contract Specification Progress Schedule Section of the Supplementary Requirements, Section S01311 which shall include a written narrative and supporting impact schedule ("**Impact Schedule**") detailing the project delays resulting from the alleged delay. The Impact Schedule shall demonstrate that the changes or anticipated delays affect activities of the current accepted schedule. In the event the Subcontractor does not submit a Time Impact Analysis related to the time requested within thirty (30) days after the request is received by Citnalta, then the Subcontractor shall be deemed to have waived any claim or right to additional compensation and/or extension of time, and no additional compensation and/or extension of time shall be granted.

19.b **Waiver of Claim.** Failure of the Subcontractor to comply with paragraph 19 of this Subcontract, the Contract Documents including Section 9.03 - Claims for Delay and Documentation of Damages caused by Delay in the Owner's General Conditions, and the Contract Specification Progress Schedule Section of the Supplementary Requirements, including but not limited to Section 1.11 Changes, Delays, Claims and Time Extensions of the Contract Specification Progress Schedule Section of the Supplementary Requirements, Section S01311 may be deemed sufficient cause for the Owner to deny any extension of time on account of a delay arising out of such condition. **For the avoidance of any doubt, failure of the Subcontractor to comply with Section 9.03 - Claims for Delay and Documentation of Damages caused by Delay in the Owner's General Conditions shall be deemed a conclusive waiver by the Subcontractor of any and all claims for damages for delay arising from such condition and no right to recover on such claim shall exist.**

19.c **Strict Compliance with Contract**. Subcontractor acknowledges and agrees that pursuant to Section 9.03 of the Owner's General Conditions no claim shall be made against the Owner unless the Contractor shall have strictly complied with all requirements relating to the giving of notice and of information with respect to such claims; and that no such action shall be instituted on any such claims unless such action is commenced within six

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(6) months after Substantial Completion and that Subcontractor shall fully cooperate by providing any notice and information necessary for Contractor to comply with Section 9.03 of the Owner's General Conditions.

19.d **Tickets for Authorized Extra Work.** Any tickets for authorized extra work must be presented for signature to Citnalta's Superintendent daily and invoiced within three (3) days; after three (3) days the invoices, tickets, and any claim related to the tickets will be rejected. Citnalta's Superintendent's signature is limited to the following: the signature of the Project Superintendent acknowledges that the work has been performed and/or verifies time and/or materials expended. The actual determination of extra work being additional cost to this Agreement is subject to review and determination by Citnalta.

20. **Release of Claims Against Contractor.** The Subcontractor hereby waives and releases any and all claims, causes of actions, and rights to additional payment and time extensions beyond the amount set forth in this Agreement, except to the extent that Citnalta receives additional funds or extensions of time on Subcontractor's behalf from the Owner.

20.a **Frivolous Claims.** In the event Subcontractor asserts any frivolous claim against Contractor, or submits a payment adjustment request that has no substantial merit or that is based in whole or in part upon inaccurate assertions, Contractor shall be entitled to collect from Subcontractor by offset or otherwise any and all costs and expenses (including but not limited to attorney's fees) incurred by Contractor in investigating, responding to defending against and resolving such claim or request.

21. **Termination.** Without in any way limiting the generality of anything contained in this Agreement, if: (a) Owner terminates or cancels the Contract or (b) Citnalta terminates or cancels the Contract because of a breach by Owner, this Agreement shall be deemed terminated. It is agreed that such termination is not a breach of this Agreement and that the Subcontractor shall have no claim of any kind against Citnalta and that Citnalta shall have no liability to Subcontractor except for the payment of the difference between (a) Subcontract value of the portion of Work furnished prior to the termination or cancellation of the Contract to the extent that such portion of Work is actually paid for by Owner and (b) the amount previously paid to Subcontractor for Work. It is further agreed and understood that Citnalta has the same power to terminate this Agreement as Owner has to terminate either the Contract or this Agreement. Citnalta, without invalidating this Agreement or any Bonds or security furnished hereunder, and without any notice to the sureties, if any, may at any time after the execution of this Agreement, reduce or omit the Subcontractor's scope of Work. Citnalta shall order such reductions or omissions by giving written notice to the Subcontractor not later than five (5) days prior to when the Work has been reduced or omitted was scheduled to begin. When Work is omitted or reduced, in whole or in part, Citnalta shall pay subject to the provisions of this Agreement, for all Work actually performed. Subcontractor is not entitled to compensation or damages for any losses or profit or overhead relating to the reduced or omitted Work.

21.a. **Termination for Convenience**. Citnalta may terminate, delay, or suspend this Subcontract or any portion of the Work to be performed by Subcontractor without cause and at any time and for any reason including Citnalta's convenience upon giving 30 days prior written notice to Subcontractor.

21.b. **Termination for Cause.** Citnalta may terminate this Subcontract immediately and have the right to declare Subcontractor in default if:

(i) The Subcontractor fails to cure a default in accordance with section 5(c) of this Subcontract;
(ii) The Subcontractor fails to perform or commence the Work as directed by Citnalta;
(iii) The Subcontractor abandons the Work;
(iv) The Subcontractor fails to deliver any equipment, goods, services, or other deliverable in accordance with this Subcontract; or
(v) The Subcontractor fails to fulfil any of its obligations under this Subcontract, is in breach of any of the provisions hereof or fails to make progress as to endanger the completion of the Work or

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the Project, in Cinalta's sole determination.

22. **Six Year Retention of Project Closeout Documents.** The Subcontractor shall be required to maintain copies of any and all Project close-out documents including but not limited to as-builts, training, operation and maintenance ("O&M") manuals for six years from the date of Final Payment. Close out Documents shall be provided to Citnalta upon request at no additional cost.

22.a. **Right to Audit and Inspection of Records**. The Subcontractor acknowledges and agrees that pursuant to Section 15.07 of the Owner's General Conditions, Subcontractor is required to maintain and keep, for a period of at least six (6) years after the date of Final Completion, all documents, records, and other data relating to the Work. The Owner and Contractor shall have the right to inspect, copy and audit, and shall have access during normal business hours to all documents, records, and other data of the Subcontractor relating to the Work or to any amounts for which Subcontractor has been compensated, or claims it should be compensated by the Owner or Contract. Such access shall be provided both before and during a period of six (6) years after Final Completion.

23. **Enforceability.** This Agreement becomes enforceable by Subcontractor following approval of Subcontractor by the Owner. This Agreement has been freely negotiated by both parties. In the event of any dispute over the meaning, interpretation, validity or enforceability of this Agreement or any of its terms or conditions, there shall be no inference against either party by virtue of Citnalta having drafted this Agreement. This Agreement shall be binding upon the parties hereto, their heirs, executors and assigns. In the event any one provision of this Agreement is unlawful or unenforceable, such unlawfulness or unenforceability shall not affect the validity of this Agreement or any other provisions contained herein.

24. **No-Waiver.** The failure of Contractor to exercise or enforce any right or provision of this Agreement shall not constitute a waiver of such right or provision.

25. **Existing Agreements.** Should one or more other existing agreements, now or hereafter, exist between Contractor and Subcontractor or with any affiliated corporation or company of Contractor or Subcontractor, concerning this or any other contract or agreement , then a breach by the Subcontractor of any agreement, may at the option of the Contractor be considered a breach of all agreements. In that event, Contractor may terminate any or all of the agreements so breached or may withhold moneys due or to become due on any such agreements and apply the same toward payment of any damages suffered on that or any other such agreements or contracts.

26. **Dispute Resolution**. Claims and disputes between Subcontractor and Contractor arising out of or in connection with this Agreement shall be resolved by binding arbitration unless Contractor, at its sole option advises Subcontractor prior to the institution of an action by Subcontractor that Contractor elects to have such claim resolved by litigation. Subcontractor shall notify Contractor prior to initiating an action to confirm Contractor's preferred method of dispute resolution. Subcontractor shall be bound by Contractor's election. In the event Contractor selects arbitration the proceedings shall be conducted pursuant to the Construction Industry Arbitration Rules issued by the American Arbitration Association then in effect. The parties shall afford each other informal discovery consistent with the discovery provisions of the Federal Rules of Civil Procedure, including the production of documents related to the claim or dispute at issue and the deposition of witnesses having knowledge of the facts pertaining to the claim or dispute at issue.

26.a. **Governing Law, Jurisdiction and Venue.** This Agreement shall be governed by and construed in accordance with the laws of the state of New York and any action or proceeding involving claims and disputes between Subcontractor and Contractor arising out of or in connection with the Agreement or the Work, Subcontractor and Contractor expressly and unconditionally waive the right to a trial by jury in the action or proceeding.



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26.b. **Limitation on Suit.** No claim or action by Subcontractor arising out of or related to this Agreement shall lie or be maintained against Contractor unless such action is commenced no later than six (6) months after either (a) the cause of action accrues, or (b) the last day Subcontractor performed any physical work at the Project site, whichever of the proceeding events shall occur first.

26.c. **Attorney's Fees.** In the event of a claim or dispute, each party shall be responsible for any and all attorney's fees incurred by the party in either initiating or defending the action regardless of who is considered the prevailing party. This requirement shall not apply to attorney's fees incurred by Subcontractor under Article 16. Indemnity of this Subcontract.

26.d. **Joinder in Related Proceedings.** In the event Owner and Contractor are involved in a separate arbitration, litigation, mediation or other legal proceeding in which any aspect of the Subcontractor's Work or entitlement to payment is at issue, or questions of law or fact common to the Subcontractor's performance under the Agreement are involved; or, if complete relief cannot be afforded in such proceeding without the Subcontractor's participation therein, Subcontractor hereby consents, upon written demand by Contractor to its consolidation or joinder in that proceeding to the applicability of any rules or procedures applicable to such proceeding; and hereby waives any objections to the location or forum in which the proceeding is pending. In the event Subcontractor has initiated litigation against Contractor or Contractor's demand for consolidation or joinder is received, and that proceeding cannot be consolidated with the proceeding in which the Contractor, Subcontractor agrees to dismiss or, in the event dismissal would prejudice Subcontractor's rights, stay the litigation.

27. **Assignment.** Subcontractor shall not assign or transfer this Agreement or any proceeds of this Agreement or any portion of the Work without the express written consent of Citnalta.

28. **Entire Agreement.** This writing comprises the full and entire Agreement between the parties affecting the work provided for herein. No payments shall be made until Subcontractor has: (1) returned an executed copy of this Agreement; (2) provided satisfactory proof of insurance; and (3) provided fully executed Bonds, if required. In the event an executed copy of the Agreement is not returned within seven (7) days of receipt, Contractor shall assume all terms have been accepted. No other Agreement or understanding of any nature concerning the same has been entered into or will be recognized. Citnalta has made no inducements or representations to Subcontractor whatsoever except as expressly stated in this Agreement. No oral modification of this Agreement shall have any force or effect.

28.a **Subcontract Subject to Award of Contract.** This Subcontract shall be subject to the award of the Contract to the Contractor by the Owner and shall not become effective until the Contract between Citnalta and the Owner has been awarded, executed, and registered by the Owner/Agency Authority.

IN WITNESS WHEREOF, the parties hereto have duly executed this Agreement, in connection to **Contract # C-81038; PS 508 @ 23-10 43rd Avenue (Queens) – New Five-Story School Building on top of an Existing Basement** as of the Effective Date last written below.

| **Citnalta Construction Corp.**: | **Elli N.Y. Design Corp.**: |
|---|---|
| BY:_____ | BY: _____ |
| NAME: _____ | NAME: Lissette Olivo |
| TITLE: _____ | TITLE: Chief Executive Officer |
| DATE: _____ | DATE: _____ |
| WITNESS: _____ | WITNESS: _____ |



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Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

**RIDER A to Subcontract between Citnalta Construction Corp. and Elli N.Y. Design Corp.**

**LIQUIDATED DAMAGES**

The construction Project shall be considered Substantially Complete when, in addition to the definition given the General Conditions of the Contract, the Owner concurs, in writing, that;

a) all work required by the Contract Documents has been successfully completed,
b) the facility can be legally occupied for its intended purpose,
c) all equipment, supplied as part of the Contract, is operational in accordance with the Plans and Specifications,
d) all required training for, and commissioning of equipment has occurred, and
e) only minor repairs/corrections to the installed work (punch list) remain to be performed.

Citnalta has outlined below the liquidated damages which will apply to this Subcontract should the completion dates or durations specified be missed as a result of the Subcontractor's failure to perform in accordance with the schedule. The Subcontractor acknowledges and agrees that RIDER A is incorporated into and made part of this Subcontract.

**LIQUIDATED DAMAGES**

If Phase I completion has not been obtained within 780 continuous calendar days after the start date as stated by the Notice to Proceed (NTP) as a result of delays caused by the Subcontractor and the Contractor is assessed liquidated damages by the Owner, the Subcontractor shall be responsible for $5,000 after each continuous calendar day Substantial Completion is not achieved.

If Substantial Completion has not been obtained within 870 continuous calendar days after the start date as stated by the Notice to Proceed (NTP) as a result of delays caused by the Subcontractor and the Contractor is assessed liquidated damages by the Owner, the subcontractor shall be responsible for $5,000 after each day substantial completion is not achieved.

The liquidated damages stated above, relating to the Project Construction, are in addition to any other liquidated damages stipulated by other sections of this Agreement, Contract No. C-81038; PS 508 @ 23-10 43rd Avenue (Queens) – New Five-Story School Building on top of an Existing Basement.

Agreed: _____ Date: _____

**Citnalta Construction Corp.**

Name: _____

Title: _____

Agreed: _____ Date: _____

**Elli N.Y. Design Corp.**

Name: Lissette Olivo

Title: Chief Executive Officer

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Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

**RIDER B to Subcontract between Citnalta Construction Corp. and Elli N.Y. Design Corp.**

**PHASING EXHIBIT**
**PS 508 @ 23-10 43rd Avenue (Queens)**
**New Five-Story School Building ontop of an Existing**
**Basement Solicitation #: SCA25-026455-1**
**LLW No(s): 118919**

The Subcontractor acknowledges and agrees that this RIDER B is incorporated into and made part of this Subcontract. Subcontractor agrees to be bound by all applicable terms and conditions of this Rider B, including but not limited to those terms and conditions related to the scope of Work to be performed by Subcontractor. Subcontractor shall assume to the Contractor all obligations and responsibilities that the Contractor assumes towards the SCA under this Rider B, to the extent applicable to the Work performed by the Subcontractor, and where the word "Contractor" is used herein it shall be understood that it is replaced with "Subcontractor" as reasonably applicable to the scope of Work to be performed by Subcontractor.

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**RIDER B CONTINUES ON NEXT PAGE**]



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Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752



**PHASING EXHIBIT**
**PS 508 @ 23-10 43rd Avenue (Queens)**
**New Five-Story School Building ontop of an Existing Basement**
**Solicitation #: SCA25-026455-1**
**LLW No(s): 118919**

The following phasing plan shall apply to the SPECIFICATION & DRAWINGS for the subject project:

1) All work in the new school shall be performed during normal working hours. All work after school occupancy shall be performed after normal school hours and shall be coordinated with the school and the SCA.

2) The Contractor is fully aware that portions of this work will be performed in a school facility operating during times indicated below. The SCA will cease any construction operations causing excessive noise, dust or similar disruptions during hours in which they are allowed to work, and school is in session.

3) Normal school hours are:
- 7:00AM to 3:00PM Monday through Friday- School Year.
- 8:00AM to 1:00PM Saturday- School Year.
- 8:00AM to 3:00PM Monday through Friday- Summer School (July & August).
- 8:00AM to 1:00PM Saturday- Summer School (July & August).

4) After-school activities hours are:
- 3:00PM to 6:00PM Monday through Friday- School Year.
- 1:00PM to 6:00PM Saturday-School Year.
- 3:00PM to 6:00PM Monday through Friday-Summer School (July & August).
- 1:00PM to 6:00PM Saturday- Summer School (July & August).

5) The Contractor shall take all precautions necessary to ensure that the construction operation will in no way interrupt or otherwise affect the activities of the school.

6) The SCA, in conjunction with Principal*(s)*, shall issue to the Contractor a list of consecutive (and or non-consecutive) days during which no work may proceed. The Contractor will not be allowed to perform any work on these days. The Contractor's bid and work schedule shall account for twenty (20) lost production days per school calendar year.

7) The Contractor shall provide one (1) uniformed security guard to be posted at the site (for 24 hours/per day for weekdays, weekends, and holidays). Security services shall be provided starting 30 consecutive calendar days from the start date indicated by the Notice to Proceed (NTP) letter until the new addition is occupied by the Department of Education (DOE) in September of the year TCO is achieved. After the new addition is occupied by the DOE, the contractor shall provide one (1) uniformed security guard during work hours until construction contract final completion is achieved.

8) After the School Occupancy, no deliveries, crane or hoisting activities will be permitted during normal school hours.

9) No overhead work shall be permitted above the existing school building when occupied.

10) After School Occupancy, all hot work, and potable water disinfection shall be done when the building is vacant.

11) No street closures shall be permitted that will impact the existing school.



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12) All asbestos and PCB removal, hot work, and potable water disinfection shall be done when the building is vacant.

13) No parking by construction personnel shall be allowed on the site.

14) The location of waste containers, field offices, dedicated stair for construction, and staging areas shall be coordinated with the Custodian and the SCA.

15) No storage space or toilet facilities will be available for construction personnel within the existing building.

16) The Contractor shall perform all necessary coordination, scheduling, and work with utility companies to provide all temporary and permanent service. All associated delays will be bore by the contractor.

17) The Contractor shall be responsible for the location and protection of all overhead and underground utilities at the site during all phases of work.

18) All work shall be performed from within the property line of this project. No entry onto adjacent properties will be provided at any time unless otherwise approved by the SCA.

19) The Contractor shall provide notification to the SCA of all work to be performed on or near the property line with an adjoining or adjacent property ten (10) business days prior to the start of the work.

20) If the contractor alters an approved fire alarm system during the course of construction, fire guards (security guard with FDNY Certificate of Fitness for Citywide Fire Guard for Impairment (F-01)) must be provided pursuant to FDNY and SCA requirements. All costs for fire guards shall be borne by the contractor.

21) Prior to performing any work in the existing building the contractors shall layout the work on a drawing illustrating pipe/conduit run locations and penetrations through floors, walls, and ceilings and submit to SCA/IEH for review and approval. Drawings are required to ensure that the asbestos protocol is fully implemented in the existing building.

22) The MDF and IDF rooms shall be ready for all work designated as “by others” ninety (90) consecutive calendar days prior to the TCO. This work shall include, but not be limited to all wires, cables, conduit racks, panels, mounting boards, cable trays and the climate control system within all these rooms. Contractor shall complete the installation and provide an approved final cable testing report before the work is considered complete. The Contractor will be assessed liquidated damages in the amount of five hundred dollars ($500.00) for each and every continuous calendar day that the above duration is not achieved. These damages are in addition to all other liquidated damages under subject contract.

23) The IPDVS shall be ready for all work designated as “by others” thirty (30) consecutive calendar days prior to the TCO. This work shall include, but not be limited to all wires, cables, conduit racks, panels, mounting boards, cable trays and cable testing. Contractor shall complete the installation and provide an approved final cable testing report before the work is considered complete. Contractor will be assessed liquidated damages in the amount of two thousand dollars ($2,000.00) for each and every continuous calendar day that the above duration is not achieved. These damages are addition to all other liquidated damages under subject contract.



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24) Within twenty (20) consecutive calendar days from the start date indicated by the Notice to Proceed (NTP) the contractor and their Filing Representative shall attend a meeting with SCA to review the permit requirements.

25) The Contractor shall provide the SCA Chief Project Officer with all permit waiver requests prior to submission to BCC for approval.

26) Unless otherwise indicated in the project specifications, within 90 consecutive calendar days from the start date indicated by the Notice to Proceed (NTP) the Contractor shall submit all submittals in accordance with the contract documents for the following items:

27) To avoid possible conflict of interest, the contractor shall not engage any firms, including, but not limited to architect, engineer, and expeditor, who has worked or is currently working for the SCA or any SCA sub-consultant on this project unless it has been approved by the SCA project officer in writing.

28) The Contractor may have no onsite access for any activities until Three Hundred Sixty-five **(365)** continuous calendar days (CCD) from the start date indicated by the Notice to Proceed (NTP). The contract may not apply for (pull) any permits during this time). The Contractor shall incorporate all General Condition cost for the Three Hundred Sixty-five **(365)** continuous (CCD).

29) The Contractor shall employ and maintain on site a full time Mechanical Super while mechanical work is performed. The Mechanical Super shall address all issues, coordinate work, manage coordination meetings, schedule all necessary mechanical testing and inspections for all mechanical, electrical, plumbing, and sprinkler trades. The resume of the proposed mechanical super shall be submitted for SCA approval.

30) The SCA has obtained all license agreement(s) with the owner(s) of the adjoining property/properties. The Contractor is referred to drawing R001 “Zone of Public Protection Plan”. In addition to all requirements of the New York City Building Code, the SCA Site Safety manual and the contract documents the contractor shall include in their bid all costs as detailed on the “Zone of Public Protection Plan” drawing R001.

31) The location of the crane is to be on 43rd Avenue. Any deviation must be submitted and approved by the MTA.

32) The Contractor shall submit Means and Methods of the proposed work/New Building Construction under a separate application for MTA review and approval before work shall begin. Means and methods must show work area in plan, cross section with influence line, step-by-step construction procedure, equipment/materials, and calculations.

## See the Next Page for Phasing Schedule:



Int. _____ Int. _____

Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

**PHASING EXHIBIT**
**PS 508 @ 23-10 43rd Avenue (Queens)**
**New Five-Story School Building ontop of an Existing Basement**
**Solicitation #: SCA25-026455-1**
**LLW No(s): 118919**

## PROJECT PHASING

Work shall be executed in accordance with the following phases:

**Phase I** - New Addition Construction, Connection to Existing Building, and TCO
**Phase II** - Contract Completion

### Phase 1 - Early Work

1) Work within this phase includes but is not limited to construction of the new building, including completion of all site work, general construction, HVAC, plumbing, electrical, fire protection, life safety systems, with only punch list work remaining. At the completion of this phase, the contractor will be responsible to obtain a Temporary Certificate of Occupancy (TCO) from the Department of Buildings for the New Building. This phase cannot be declared complete until the TCO is obtained.

2) Work indicated in Phase I including obtaining the TCO shall be completed within **780** continuous calendar days (CCD) from the start date indicated by the Notice to Proceed (NTP). **Additional liquidated damages shall be assessed in the amount of five thousand ($5,000.00) dollars for each continuous calendar day that the contractor does not meet completion as indicated above.** These damages are in addition to all other liquidated damage under subject contract.

### Phase II – Contract Completion

1) Complete all remaining work to obtain substantial completion.

2) Phase II work shall be completed within remaining contract duration.



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Docusign Envelope ID: 0320E447-90C1-482E-8AA5-B24D20BE9752

# CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

**THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.**

**IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).**

| | |
|---|---|
| **PRODUCER**<br>Your Broker | **CONTACT NAME:**<br>**PHONE (A/C, No, Ext):** **FAX (A/C, No):**<br>**E-MAIL ADDRESS:** |
| **INSURED**<br>Your Firm | **INSURER(S) AFFORDING COVERAGE** / **NAIC #**<br>**INSURER A :**<br>**INSURER B :**<br>**INSURER C :**<br>**INSURER D :**<br>**INSURER E :**<br>**INSURER F :** |

**COVERAGES** **CERTIFICATE NUMBER:** **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

| INSR LTR | TYPE OF INSURANCE | ADDL INSR | SUBR WVD | POLICY NUMBER | POLICY EFF (MM/DD/YYYY) | POLICY EXP (MM/DD/YYYY) | LIMITS | |
|---|---|---|---|---|---|---|---|---|
| | **GENERAL LIABILITY**<br>COMMERCIAL GENERAL LIABILITY<br>CLAIMS-MADE OCCUR<br>GEN'L AGGREGATE LIMIT APPLIES PER:<br>POLICY X PRO-JECT LOC | X | X | | | | EACH OCCURRENCE<br>DAMAGE TO RENTED PREMISES (Ea occurrence)<br>MED EXP (Any one person)<br>PERSONAL & ADV INJURY<br>GENERAL AGGREGATE<br>PRODUCTS - COMP/OP AGG | $ 1MM<br>$<br>$<br>$<br>$ 2MM<br>$ |
| | **AUTOMOBILE LIABILITY**<br>X ANY AUTO<br>ALL OWNED AUTOS<br>SCHEDULED AUTOS<br>X HIRED AUTOS<br>X NON-OWNED AUTOS | X | X | SAMPLE | | | COMBINED SINGLE LIMIT (Ea accident)<br>BODILY INJURY (Per person)<br>BODILY INJURY (Per accident)<br>PROPERTY DAMAGE (Per accident) | $ 1MM<br>$<br>$<br>$ |
| | **UMBRELLA LIAB** OCCUR<br>**EXCESS LIAB** CLAIMS-MADE<br>DED RETENTION $ | X | X | | | | EACH OCCURRENCE<br>AGGREGATE | $<br>$ as needed |
| | **WORKERS COMPENSATION AND EMPLOYERS' LIABILITY**<br>ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? Y / N<br>**(Mandatory in NH)**<br>If yes, describe under DESCRIPTION OF OPERATIONS below | N / A | X | | | | WC STATU-TORY LIMITS OTH-ER<br>E.L. EACH ACCIDENT<br>E.L. DISEASE - EA EMPLOYEE<br>E.L. DISEASE - POLICY LIMIT | 1MM<br>$<br>$<br>$ |

**DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)**

RE: Contract No.: C000081038 Solicitation No.: SCA25-026455-1, PS 508 (Queens) - New 5 Story School Building on top of an Existing Basement Citnalta Construction Corp., NYC School Construction Authority, PS 508 (Queens), New York City Department of Education; the City of New York, and any additional entities as required by the New York City School Construction Authority are included as Additional Insured on a primary and non-contributory basis with respects to General Liability and Umbrella Liability as required by written contract. General Liability and Umbrella/Excess are afforded for off-site operations only if enrolled in OCIP. Automobile Liability is afforded for both on-site and off-site operations. Waiver of Subrogation is included and applies in favor of the additional insureds as required by written contract.

| **CERTIFICATE HOLDER** | **CANCELLATION** |
|---|---|
| Citnalta Construction Corp.<br>1601 Locust Avenue<br>Bohemia, NY 11716 | **SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.**<br>**AUTHORIZED REPRESENTATIVE** |

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AGENCY CUSTOMER ID: _____

# NEW YORK CONSTRUCTION CERTIFICATE OF LIABILITY INSURANCE ADDENDUM

DATE (MM/DD/YYYY)

**THIS ADDENDUM SUMMARIZES SOME OF THE POLICY PROVISIONS IN THE REFERENCED INSURANCE POLICIES AND IS ISSUED AS A MATTER OF INFORMATION ONLY; IT CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. ALL TERMS, EXCLUSIONS AND CONDITIONS IN THE ACTUAL POLICY SHOULD BE CONSULTED FOR A MORE DETAILED ANALYSIS OF COVERAGE, AS THIS ADDENDUM DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES.**

| AGENCY | | NAMED INSURED(S) | |
|---|---|---|---|
| POLICY NUMBER | EFFECTIVE DATE | CARRIER | NAIC CODE |
| | | | |

**ADDENDUM INFORMATION** **CERTIFICATE NUMBER:** **REVISION NUMBER:**

**A. Insurer**

☐ Admitted / authorized

☐ Excess line or free trade zone

**B. General Liability (GL) policy form**

☐ ISO / ISO modified

☐ Other

**C. Specific operations excluded or restricted (GL policy)**

☐ Location: _____

☐ Type of construction: _____

☐ Building height: _____

☐ Classifications [see attached declarations / endorsement]

☐ Designated work [see attached endorsement]

**D. Additional insured endorsement (GL policy)**

☐ CG 20 10 ☐ CG 20 26 ☐ CG 20 32 ☐ CG 20 33 ☐ CG 20 37 ☐ CG 20 38

☐ Other: #: _____ Title: _____

**E. According to the terms of this GL policy, the additional insured has primary and noncontributory coverage**

☐ Yes ☐ No and ☐ no other option is available with this insurer

**F. Additional insured will receive advance notice if insurer cancels (GL policy)**

☐ Yes ☐ No and ☐ no other option is available with this insurer

**G. Blanket contractual liability located in the "insured contract" definition (Section V, Number 9, Item f. in the ISO CGL policy) is removed or restricted**

☐ Yes and ☐ no other option is available with this insurer ☐ No changes made

**H. "Insured contract" exception to the employers liability exclusion is removed or modified (GL policy)**

☐ Yes and ☐ no other option is available with this insurer ☐ No changes made

**I. GL policy (including endorsements) does not cover the additional insured for claims involving injury to employees of the named insured or subcontractors (not workers' compensation)**

☐ Yes and ☐ no other option is available with this insurer ☐ No changes made

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**ADDENDUM INFORMATION (continued)**

**AGENCY CUSTOMER ID:** _____

**J. Earth movement, excavation or explosion / collapse / underground property damage is excluded or restricted (GL policy)**

☐ Yes and ☐ no other option is available with this insurer ☐ No changes made

**K. Insured vs. insured suits (cross liability in the ISO CGL policy) are excluded or restricted (other than named insured vs. named insured)**

☐ Yes and ☐ no other option is available with this insurer ☐ No changes made

**L. Property damage to work performed by subcontractors (exception to the "damage to your work" exclusion in the ISO CGL policy) is excluded or restricted**

☐ Yes and ☐ no other option is available with this insurer ☐ No changes made

**M. Excess / umbrella policy is primary and non-contributory for additional insureds**

☐ Yes, by specific policy provision ☐ Yes, by endorsement ☐ No and ☐ no other option is available with this insurer

_____ _____

**AUTHORIZED REPRESENTATIVE SIGNATURE** **DATE (MM/DD/YYYY)**

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## POLICY NO:

# SCHEDULE OF FORMS & ENDORSEMENTS

| | |
|---|---|
| Claims Rpt | Claims Reporting |
| Security Slip - Fire | Security Slip - Fire Suppression (B1332P18USD017) |
| PILG 1000 08 17 | Common Policy Declarations |
| IL 00 03 09 08 | Calculation of Premium |
| IL 00 17 11 98 | Common Policy Conditions |
| IL 00 21 09 08 | Nuclear Energy Liability Exclusion |
| PILG 1001 08 17 | Supplemental Declarations - Commercial General Liability Coverages |
| PILG 1002 08 17 | Schedule of Forms & Endorsements |
| CG 00 01 04 13 | Commercial General Liability Coverage Form |
| CG 03 00 01 96 | Deductible Liability Insurance |
| CG 04 35 12 07 | Employee Benefits Liability |
| CG 20 01 04 13 | Blanket Primary & Noncontributory - Other Insurance Condition |
| CG 20 10 04 13 | Blanket Additional Insured - Owners, Lessees, or Contractors - Scheduled Person or Organization |
| CG 22 74 10 01 | Limited Contractual Liability Coverage for Personal and Advertising Injury |
| CG 20 37 04 13 | Blanket Additional Insured - Owners, Lessees, or Contractors - Completed Operations |
| CG 21 06 05 14 | Exclusion: Access or Disclosure of Confidential or Personal Information & Data-Related Liability |
| CG 21 09 06 15 | Exclusion: Unmanned Aircraft |
| CG 21 47 12 07 | Employment-Related Practices Exclusion |
| CG 21 52 04 13 | Exclusion - Financial Services |
| CG 21 54 01 96 | Exclusion - Designated Operations Covered by a Consolidated Insurance Program |

SAMPLE

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POLICY NUMBER: FSG000158-01

COMMERCIAL GENERAL LIABILITY
CG 20 37 04 13

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

**SCHEDULE**

| Name Of Additional Insured Person(s) Or Organization(s) | Location And Description Of Completed Operations |
|---|---|
| **Blanket where required by written contract.** | |
| | |
| | |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations. | |

**A.** **Section II – Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" at the location designated and described in the Schedule of this endorsement performed for that additional insured and included in the "products-completed operations hazard".

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

**B.** With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or
2. Available under the applicable Limits of Insurance shown in the Declarations;

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

SAMPLE

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**C.** With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

**1.** Required by the contract or agreement; or

**2.** Available under the applicable Limits of Insurance shown in the Declarations;

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

SAMPLE

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POLICY NUMBER: FSG000158-01

COMMERCIAL GENERAL LIABILITY
CG 20 10 04 13

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – SCHEDULED PERSON OR ORGANIZATION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**SCHEDULE**

| Name Of Additional Insured Person(s) Or Organization(s) | Location(s) Of Covered Operations |
|---|---|
| Blanket where required by written contract | |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations. | |

**A. Section II – Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

1. Your acts or omissions; or
2. The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured(s) at the location(s) designated above.

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

**B.** With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to "bodily injury" or "property damage" occurring after:

1. All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or
2. That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

SAMPLE


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POLICY NUMBER: FSG000158-01

COMMERCIAL GENERAL LIABILITY
CG 24 04 05 09

# WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

**SCHEDULE**

| **Name Of Person Or Organization:** |
|---|
| Blanket where required by written contract. |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations. |

The following is added to Paragraph **8. Transfer Of Rights Of Recovery Against Others To Us** of **Section IV – Conditions:**

We waive any right of recovery we may have against the person or organization shown in the Schedule above because of payments we make for injury or damage arising out of your ongoing operations or "your work" done under a contract with that person or organization and included in the "products-completed operations hazard". This waiver applies only to the person or organization shown in the Schedule above.

SAMPLE


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POLICY NUMBER: FSG000158-01

COMMERCIAL GENERAL LIABILITY
CG 20 01 04 13

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

# PRIMARY AND NONCONTRIBUTORY – OTHER INSURANCE CONDITION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following is added to the **Other Insurance** Condition and supersedes any provision to the contrary:

**Primary And Noncontributory Insurance**

This insurance is primary to and will not seek contribution from any other insurance available to an additional insured under your policy provided that:

**(1)** The additional insured is a Named Insured under such other insurance; and

**(2)** You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

SAMPLE


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